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Amending Acts

1. Constitution of Nepal (First Amendment), 2072 2072.11.16
2. Constitution of Nepal (Second Amendment), 2077 2077.03.04

Preamble

We, the Sovereign People of Nepal;

Internalizing the sovereign authority, autonomy, and right to self-governance of the people while preserving Nepal's independence, sovereignty, geographical integrity, national unity, freedom, and dignity;

Recalling the glorious history of historical people's movements, armed struggles, sacrifices, and martyrdom repeatedly made by the Nepali people for national interest, democracy, and progressive change, and paying tribute to the martyrs and missing and victim citizens;

Ending all forms of discrimination and oppression created by the feudal, autocratic, centralized, and unitary system of governance;

Embracing the characteristics of multi-ethnic, multi-lingual, multi-religious, multi-cultural, and geographical diversity, and preserving and promoting unity in diversity, social and cultural solidarity, tolerance, and harmony;

Resolved to build an equitable society based on the principles of proportional inclusion and participation to end class, ethnic, regional, linguistic, religious, and gender discrimination and all forms of caste-based untouchability, and to ensure economic equality, prosperity, and social justice;

Committed to socialism based on democratic values and norms including the people's competitive multi-party democratic governance system, civil liberty, fundamental rights, human rights, adult franchise, periodic elections, full press freedom, and independent, impartial, and competent judiciary and the concept of rule of law, to build a prosperous nation;

Do hereby promulgate this Constitution through the Constituent Assembly to fulfill the aspirations for sustainable peace, good governance, development, and prosperity through the federal democratic republican system of governance. Part-1

Preliminary

1. Constitution as the Fundamental Law: (1) This Constitution is the fundamental law of Nepal. Any law inconsistent with this Constitution shall, to the extent of such inconsistency, be void.

(2) It shall be the duty of every person to uphold this Constitution. 2. Sovereignty and State Authority: The sovereignty and state authority of Nepal are vested in the Nepali people. The exercise thereof shall be in accordance with the provisions of this Constitution. 3. Nation: All Nepali people, being attached to the bond of unity, having common aspirations and faith in Nepal's national independence, geographical integrity, national interest, and prosperity, and characterized by multi-ethnic, multi-lingual, multi-religious, multi-cultural features and geographical diversity, collectively constitute the Nation. 4. State of Nepal: (1) Nepal is an independent, indivisible, sovereign, secular, inclusive, democratic, socialism-oriented, federal democratic republican state.

Explanation: For the purpose of this Article, "secular" means religious, cultural freedom including the preservation of religion and culture practiced from time immemorial. (2) The territory of Nepal shall comprise: (a) The territory existing at the time of the commencement of this Constitution, and (b) The territory acquired after the commencement of this Constitution. 5. National Interest: (1) The preservation of Nepal's independence, sovereignty, geographical integrity, nationality, freedom, dignity, protection of the rights and interests of Nepalis, security of borders, economic prosperity, and wealth shall be the fundamental subjects of Nepal's national interest. (2) Conduct and acts contrary to national interest shall be punishable according to federal law. 6. National Languages: All mother tongues spoken in Nepal are national languages. 7. Language of Official Business: (1) The Nepali language written in Devanagari script shall be the language of official business of Nepal. (2) In addition to the Nepali language, a Province may, by provincial law, determine one or more than one other national language spoken by the majority of people within its territory as the language of official business of the Province. (3) Other matters relating to language shall be as decided by the Government of Nepal upon the recommendation of the Language Commission. 8. National Flag: (1) The flag of Nepal consists of two triangles joined slightly, with a crimson-colored base and a dark blue border, bearing a white emblem with sixteen rays in the shape of a crescent moon in the upper part and a white emblem of the sun with twelve rays in the lower part. This is the national flag of Nepal. (2) The national flag of Nepal, the method of making the national flag, and other related details shall be as mentioned in Schedule-1. 9. National Anthem, etc.: (1) The national anthem of Nepal shall be as mentioned in Schedule-2. (2) The coat-of-arms of Nepal shall be as mentioned in Schedule-3. (3) The national flower of Nepal is Rhododendron (Laligurans), the national color is Crimson (Simrik), the national animal is the Cow (Gai), and the national bird is the Danphe (Lophophorus). Part-2 Citizenship 10. Not to be Deprived of Citizenship: (1) No Nepali citizen shall be deprived of the right to acquire citizenship. (2) There is a provision of a single federal citizenship with provincial identity in Nepal. 11.

Persons Deemed Citizens of Nepal: (1) Persons who have acquired citizenship of Nepal at the time of the commencement of this Constitution and persons who are eligible to acquire citizenship under this Part shall be citizens of Nepal. (2) The following persons having their permanent domicile in Nepal at the time of the commencement of this Constitution shall be deemed citizens of Nepal by descent: (a) A person who has acquired citizenship of Nepal by descent before the commencement of this Constitution, (b) A person whose father or mother was a citizen of Nepal at the time of his/her birth. (3) A child of a citizen who acquired citizenship of Nepal by birth before the commencement of this Constitution shall acquire citizenship of Nepal by descent after attaining majority if both the father and mother were citizens of Nepal. (4) Every minor found within Nepal whose paternity and maternity are not known shall, until the father or mother is traced, be deemed a citizen of Nepal by descent. (5) A person born in Nepal to a Nepali citizen mother and residing in Nepal whose father is not identified shall be granted citizenship of Nepal by descent. Provided that if it is

determined that the father is a foreign citizen, the citizenship of such a person shall be converted to naturalized citizenship according to federal law. (6) A foreign woman married to a Nepali citizen may, if she so desires, acquire naturalized citizenship of Nepal according to federal law. (7) Notwithstanding anything contained elsewhere in this Article, in the case of a person born to a Nepali woman citizen who is married to a foreign citizen, if such person has permanent domicile in Nepal and has not acquired citizenship of a foreign country, he/she may acquire naturalized citizenship of Nepal according to federal law. Provided that if both the mother and father of such a person born in Nepal were Nepali citizens at the time of acquiring citizenship, such person may acquire citizenship of Nepal by descent. (8) Except as provided in this Article, the Government of Nepal may, according to federal law, grant naturalized citizenship of Nepal. (9) The Government of Nepal may, according to federal law, grant honorary citizenship of Nepal. (10) If any area is acquired for merger with Nepal, a person having domicile in such area shall become a citizen of Nepal, subject to federal law. 12.

Citizenship with Gender Identity: A person acquiring citizenship of Nepal by descent according to this Constitution may obtain a certificate of citizenship of Nepal with gender identity from the name of his/her mother or father. 13. Acquisition, Re-acquisition, and Termination of Citizenship: Other matters relating to the acquisition, re-acquisition, and termination of citizenship shall be according to federal law. 14. Grant of Non-Resident Nepali Citizenship: A person who has acquired citizenship of a foreign country (other than a member state of the South Asian Association for Regional Cooperation) residing in that country, and who himself/herself, his/her father or mother, grandfather or grandmother was a citizen of Nepal by descent or birth previously and subsequently acquired citizenship of a foreign country, may be granted non-resident citizenship of Nepal according to federal law, entitling him/her to enjoy economic, social, and cultural rights. 15. Other Provisions relating to Citizenship of Nepal: Maintaining records identifying every citizen of Nepal and other provisions relating to citizenship of Nepal shall be according to federal law. Part-3 Fundamental Rights and Duties 16. Right to Live with Dignity: (1) Every person shall have the right to live with dignity. (2) No law shall be made providing for the death penalty. 17. Right to Freedom: (1) No person shall be deprived of personal freedom except in accordance with law. (2) Every citizen shall have the following freedoms: (a) Freedom of thought and expression, (b) Freedom to assemble peaceably without arms, (c) Freedom to form political parties, (d) Freedom to form associations and organizations, (e) Freedom to move and reside in any part of Nepal, (f) Freedom to practise any profession, carry on any occupation, and establish and operate any industry, trade, and business in any part of Nepal.

Provided that:

(1) Nothing in clause (a) shall be deemed to prevent the making of laws imposing reasonable restrictions on any act which may undermine the sovereignty, geographical integrity, nationality, and independence of Nepal, or disturb the harmonious relations between federal units or among various castes, ethnic groups, religions, or sects, or incite caste discrimination or untouchability, or disrespect labor, or defame, or be contempt of court, or incite the commission of an offence, or be contrary to public decency or morality.

(2) Nothing in clause (b) shall be deemed to prevent the making of laws imposing reasonable restrictions on any act which may undermine the sovereignty, geographical integrity, nationality, and independence of Nepal, or disturb the harmonious relations between federal units, or public peace and order.

(3) Nothing in clause (c) shall be deemed to prevent the making of laws imposing reasonable restrictions on any act which may undermine the sovereignty, geographical integrity, nationality, and independence of Nepal, or spy against the nation, or divulge national secrets, or assist any foreign state, organization, or representative in a manner that compromises Nepal's security, or commit treason, or disturb the harmonious relations between federal units, or spread ethnic or communal hatred, or disturb harmonious relations among

various castes, ethnic groups, religions, and sects, or grant or restrict membership of a political party solely on the basis of caste, language, religion, sect, or gender, or form a political party with discriminatory intent among citizens, or incite the commission of violent acts, or be contrary to public morality.

(4) Nothing in clause (d) shall be deemed to prevent the making of laws imposing reasonable restrictions on any act which may undermine the sovereignty, geographical integrity, nationality, and independence of Nepal, or spy against the nation, or divulge national secrets, or assist any foreign state, organization, or representative in a manner that compromises Nepal's security, or commit treason, or disturb the harmonious relations between federal units, or spread ethnic or communal hatred, or disturb harmonious relations among various castes, ethnic groups, religions, and sects, or incite the commission of violent acts, or be contrary to public morality.

(5) Nothing in clause (e) shall be deemed to prevent the making of laws imposing reasonable restrictions on any act which may be against the interest of the general public or disturb the harmonious relations between federal units or among various castes, ethnic groups, religions, or sects, or commit violent acts or incite the commission thereof.

(6) Nothing in clause (f) shall be deemed to prevent the making of laws imposing restrictions on any act which may disturb the harmonious relations between federal units, or be contrary to public health, decency, or morality of the general public, or preventing any specific industry, trade, or service from being operated solely by the state, or prescribing any condition or qualification for practising any profession, occupation, industry, trade, or business.

18. Right to Equality: (1) All citizens shall be equal before the law. No person shall be denied the equal protection of the law.

(2) There shall be no discrimination in the application of general laws on grounds of origin, religion, caste, tribe, ethnicity, gender, physical condition, disability, health condition, marital status, pregnancy, economic condition, language or region, ideological conviction, or any other similar grounds.

(3) The state shall not discriminate among citizens on grounds of origin, religion, caste, tribe, ethnicity, gender, economic condition, language, region, ideological conviction, or any other similar grounds. Provided that nothing shall be deemed to prevent the making of special provisions by law for the protection, empowerment, or development of citizens including women, Dalits, indigenous peoples, Adivasi Janajatis, Madhesis, Tharus, Muslims, oppressed classes, backward classes, minorities, marginalized groups, peasants, laborers, youth, children, senior citizens, gender and sexual minorities, persons with disabilities, pregnant persons, incapacitated or helpless, backward regions, and economically disadvantaged Khas Arya. Explanation: For the purpose of this Part and Part 4, "economically disadvantaged" means a person having income less than the income prescribed by federal law.

(4) There shall be no discrimination in remuneration and social security for equal work on grounds of gender.

(5) All children shall have equal rights in ancestral property without gender discrimination.

19. Right to Communication: (1) There shall be no prior restraint on the publication and dissemination or broadcast of any news, editorial, article, writing, or any other textual, audio, or audio-visual material, or transmission of information, or printing through any medium, including electronic publication, broadcasting, and print media. Provided that nothing shall be deemed to prevent the making of laws imposing reasonable restrictions on any act which may undermine the sovereignty, geographical integrity, nationality, or harmonious relations between federal units or among various castes, ethnic groups, religions, or sects, or amount to seduction, defamation, or contempt of court, or incite the commission of an offence, or be contrary to public decency or morality, or disrespect labor, or incite caste-based untouchability and gender discrimination.

(2) The radio, television, online or any other kind of digital or electronic device, print or other communication

medium publishing, broadcasting, or printing any news, article, editorial, writing, information, or any other material through any audio, audio-visual, or electronic device or printing press shall not be closed, confiscated, or have its registration canceled, nor shall such material be confiscated solely on account of such publication, broadcast, or printing.

Provided that nothing in this sub-article shall be deemed to prevent the making of laws for the regulation of radio, television, online or any other kind of digital or electronic device, printing press, or other communication medium.

(3) No means of communication, including print, electronic broadcasting, and telephone, shall be obstructed except according to law. 20. Rights relating to Justice: (1) No person shall be detained in custody without being informed of the grounds for arrest.

(2) A person arrested shall have the right to consult a legal practitioner of his/her choice from the time of arrest and to be defended by a legal practitioner. The consultation and advice rendered by such legal practitioner shall remain confidential. Provided that this sub-article shall not apply to a citizen of an enemy state. Explanation: For the purpose of this sub-article, "legal practitioner" means a person authorized by law to represent any person in any office or court.

(3) A person arrested shall be produced before an adjudicating authority within twenty-four hours, excluding the time required for travel from the place of arrest to such authority, and the person arrested shall not be detained in custody except on the order of such authority. Provided that this sub-article shall not apply to a person kept in preventive detention and a citizen of an enemy state.

(4) No person shall be punished for any act which was not an offence under the law in force at the time it was committed, nor shall any person be subjected to a penalty greater than that provided by law for the offence at the time it was committed.

(5) A person accused of any offence shall be presumed innocent until proven guilty.

(6) No person shall be tried and punished more than once for the same offence in a court.

(7) A person accused of any offence shall not be compelled to be a witness against himself/herself.

(8) Every person shall have the right to be informed about the proceedings instituted against himself/herself.

(9) Every person shall have the right to a fair hearing from an independent, impartial, and competent court or judicial body.

(10) An indigent party shall have the right to free legal aid according to law. 21. Right of the Victim of an Offence: (1) A victim of an offence shall have the right to be informed about the investigation and proceedings related to the offence of which he/she was a victim.

(2) A victim of an offence shall have the right to justice including social rehabilitation and compensation according to law. 22.

Right against Torture: (1) A person who is arrested or detained in custody shall not be subjected to physical or mental torture, nor to cruel, inhuman, or degrading treatment. (2) Any act under sub-article (1) shall be punishable according to law, and a person victimized by such treatment shall have the right to compensation according to law. 23. Right against Preventive Detention: (1) No person shall be placed in preventive detention without sufficient grounds of an imminent threat to the sovereignty, geographical integrity, or public peace and order of Nepal. (2) Information about the situation of a person held in preventive detention under sub-article (1) shall be given immediately to his/her family members or close relatives according to law. Provided that this sub-article shall not apply to a citizen of an enemy state. (3) If an official authorized to place a person in preventive detention detains any person unlawfully or in bad faith, such person shall have the right to compensation according to law. 24. Right against Untouchability and Discrimination: (1) No person shall be subjected to any form of untouchability or discrimination in any private or public place on grounds of

his/her origin, caste, ethnicity, community, profession, occupation, or physical condition. (2) When producing or distributing any goods, services, or facilities, such goods, services, or facilities shall not be prohibited for purchase or acquisition by persons of a specific caste or ethnicity, nor shall such goods, services, or facilities be sold, distributed, or provided only to persons of a specific caste or ethnicity. (3) No person or community shall be portrayed as superior or inferior on grounds of origin, caste, ethnicity, or physical condition; social discrimination based on caste, ethnicity, or untouchability shall not be considered justifiable; ideas based on untouchability and caste superiority or hatred shall not be propagated; nor shall caste-based discrimination be encouraged in any manner. (4) No form of discrimination, whether based on untouchability or not, shall be permitted in the workplace on grounds of caste. (5) All forms of untouchability and discriminatory acts contrary to this Article shall be punishable as serious social offences according to law, and a person victimized by such an act shall have the right to compensation according to law. 25. Right to Property: (1) Every citizen shall have the right to acquire, enjoy, sell, obtain commercial benefit from, and otherwise deal with property, subject to law. Provided that the state may impose tax on the property of a person and tax on the income of a person in accordance with the principle of progressive taxation.

Explanation: For the purpose of this Article, "property" means all kinds of property including movable and immovable property, and the term also denotes intellectual property. (2) The state shall not acquire, take possession of, or create any right over any property of any person otherwise than for public interest. Provided that this sub-article shall not apply to property acquired unlawfully by any person. (3) When the state acquires any property of any person for public interest under sub-article (2), the basis and procedure for compensation shall be according to law. (4) Nothing in sub-articles (2) and (3) shall prevent the state from undertaking land reform, management, and regulation according to law for the purposes of increasing land production and productivity, modernizing and commercializing agriculture, preserving the environment, and promoting planned housing and urban development. (5) Nothing in this Article shall prevent the state from using property acquired for public interest under sub-article (3) for another public interest instead of the original public interest. 26. Right to Religious Freedom: (1) Every person professing a religion shall have the freedom to adopt, practice, and preserve his/her religion according to his/her faith. (2) Every religious denomination shall have the right to operate and preserve religious sites and religious trusts. Provided that nothing shall be deemed to prevent the making of laws for the regulation of the operation and preservation of religious sites and religious trusts, and the management of trust property and land. (3) While exercising the right conferred by this Article, no person shall engage in or cause to engage in any activity contrary to public health, decency, and morality, or disruption of public peace, or convert someone from his/her religion, or do or cause to do any act or behavior that disturbs another's religion. Such an act shall be punishable according to law. 27. Right to Information: Every citizen shall have the right to request and obtain information on any matter of his/her own concern or of public concern. Provided that no person shall be compelled to provide information that must be kept confidential according to law. 28. Right to Privacy: The privacy of any person's body, residence, property, documents, data, correspondence, and character shall be inviolable except according to law. 29.

Right against Exploitation: (1) Every person shall have the right against exploitation. (2) No person shall be exploited in any manner on grounds of religion, custom, tradition, rite, practice, or any other basis. (3) No person shall be trafficked, enslaved, or bonded. (4) No person shall be compelled to work against his/her will. Provided that nothing shall be deemed to prevent the making of laws empowering the state to require citizens to perform compulsory service for public purposes. (5) Acts contrary to sub-articles (3) and (4) shall be punishable according to law, and the victim shall have the right to compensation from the perpetrator according to law. 30. Right to Clean Environment: (1) Every citizen shall have the right to live in a clean and

healthy environment. (2) A victim of environmental pollution or degradation shall have the right to compensation from the polluter according to law. (3) Nothing in this Article shall be deemed to prevent the making of necessary legal provisions for a proper balance between environment and development in development-related works of the nation. 31. Right relating to Education: (1) Every citizen shall have the right to access basic education. (2) Every citizen shall have the right to receive education up to the basic level as compulsory and free of cost from the state, and up to the secondary level as free of cost. (3) Citizens with disabilities and economically disadvantaged citizens shall have the right to free higher education according to law. (4) Visually impaired citizens shall have the right to free education through Braille script, and citizens with hearing or speech-related disabilities shall have the right to free education through sign language according to law. (5) Every Nepali community residing in Nepal shall have the right to receive education in its mother tongue and to open and operate schools and educational institutions for that purpose according to law. 32. Right to Language and Culture: (1) Every person and community shall have the right to use its language. (2) Every person and community shall have the right to participate in the cultural life of its community. (3) Every Nepali community residing in Nepal shall have the right to promote and preserve its language, script, culture, cultural civilization, and heritage. 33. Right to Employment: (1) Every citizen shall have the right to employment.

The terms and conditions of employment and unemployment assistance shall be according to federal law. (2) Every citizen shall have the right to choose employment. 34. Right to Labour: (1) Every labourer shall have the right to proper labour practices. Explanation: For the purpose of this Article, "labourer" means a worker or labourer who performs physical or intellectual work for an employer in return for remuneration. (2) Every labourer shall have the right to fair remuneration, facilities, and social security based on contribution. (3) Every labourer shall have the right to form a trade union, participate in it, and engage in collective bargaining according to law. 35. Right relating to Health: (1) Every citizen shall have the right to receive basic health services free of cost from the state, and no person shall be denied emergency health services. (2) Every person shall have the right to be informed about his/her health treatment. (3) Every citizen shall have the right to equal access to health services. (4) Every citizen shall have the right to access clean drinking water and sanitation. 36. Right relating to Food: (1) Every citizen shall have the right relating to food. (2) Every citizen shall have the right to be protected from a situation where life is at risk due to lack of food items. (3) Every citizen shall have the right to food sovereignty according to law. 37. Right to Housing: (1) Every citizen shall have the right to appropriate housing. (2) No citizen shall be evicted from or have his/her residence owned by him/her encroached upon except according to law. 38. Right of Women: (1) Every woman shall have equal right to lineage without gender discrimination. (2) Every woman shall have the right to safe motherhood and reproductive health. (3) No woman shall be subjected to physical, mental, sexual, psychological, or any other kind of violence or exploitation on grounds of religious, social, cultural tradition, practice, or any other basis. Such an act shall be punishable according to law, and the victim shall have the right to compensation according to law. (4) Women shall have the right to participate in all state bodies on the basis of the proportional inclusive principle. (5) Women shall have the right to special opportunities in education, health, employment, and social security on the basis of positive discrimination. (6) Both spouses shall have equal rights in property and family matters. 39.

Right of Children: (1) Every child shall have the right to naming and birth registration with his/her identity. (2) Every child shall have the right to education, health, upbringing, proper care, sports, recreation, and overall personality development from the family and the state. (3) Every child shall have the right to early childhood development and child participation. (4) No child shall be employed in factories, mines, or other such hazardous work. (5) No child shall be subjected to child marriage, illegal trafficking, abduction, or held

hostage. (6) No child shall be recruited or used in any army, police, or armed group, or subjected to ill-treatment, neglect, or physical, mental, sexual, or other forms of exploitation or improper use in the name of cultural or religious practices by any means or manner. (7) No child shall be subjected to physical, mental, or any other kind of torture at home, school, or any other place and situation. (8) Every child shall have the right to child-friendly justice. (9) Destitute, orphaned, disabled, conflict-affected, displaced, and at-risk children shall have the right to special protection and facilities from the state. (10) Acts contrary to sub-articles (4), (5), (6), and (7) shall be punishable according to law, and a child victim of such an act shall have the right to compensation from the perpetrator according to law. 40. Right of Dalits: (1) Dalits shall have the right to participate in all state bodies on the basis of the proportional inclusive principle. Special provisions shall be made according to law for the empowerment, representation, and participation of the Dalit community in public services and other employment sectors. (2) Dalit students shall be provided free education with scholarships according to law from primary level up to higher education. Special provisions shall be made according to law for Dalits in technical and vocational higher education. (3) Special provisions shall be made according to law to provide health and social security to the Dalit community. (4) The Dalit community shall have the right to use, preserve, and develop its traditional profession, knowledge, skills, and technology. The state shall give priority to Dalits in modern professions related to their traditional professions and provide the necessary skills and resources for that purpose. (5) The state shall provide land once to landless Dalits according to law. (6) The state shall arrange for housing for houseless Dalits according to law. (7) The facilities provided by this Article to the Dalit community shall be justly distributed so that Dalit women, men, and Dalits of all communities receive them proportionally. 41. Right of Senior Citizens: Senior citizens shall have the right to special protection and social security from the state. 42.

Right to Social Justice: Amended by the First Amendment. (1) Women, Dalits, indigenous nationalities, Madhesis, Tharus, Muslims, backward classes, minorities, marginalized groups, persons with disabilities, gender and sexual minorities, peasants, laborers, citizens of oppressed or backward regions, and economically disadvantaged Khas Arya, who are lagging behind economically, socially, or educationally, shall have the right to participate in state bodies on the basis of the proportional inclusive principle. (2) Citizens of economically disadvantaged and endangered communities shall have the right to special opportunities and benefits in education, health, housing, employment, food, and social security for their protection, upliftment, empowerment, and development. (3) Citizens with disabilities shall have the right to live a life of dignity and self-respect with recognition of diversity and equal access to public services and facilities. (4) Every peasant shall have the right to access to land for agricultural work, and the right to choose and preserve local seeds and agricultural species traditionally used and adopted, according to law. (5) The families of martyrs who sacrificed their lives during all people's movements, armed struggles, and revolutions for progressive democratic change in Nepal, families of disappeared persons, democracy fighters, conflict-affected and displaced persons, persons with disabilities, injured and victims shall have the right to justice and due respect, and to opportunities with priority in education, health, employment, housing, and social security according to law. 43. Right to Social Security: Economically disadvantaged, incapacitated and helpless, helpless single women, persons with disabilities, children, persons unable to care for themselves, and citizens of endangered ethnic groups shall have the right to social security according to law. 44. Right of Consumers: (1) Every consumer shall have the right to obtain quality goods and services. (2) A person who has suffered damage from substandard goods or services shall have the right to compensation according to law. 45. Right against Exile: No citizen shall be exiled. 46. Right to Constitutional Remedy: For the enforcement of the rights conferred by this Part, the right to constitutional remedy as provided in Article 133 or 144 shall exist. 47. Implementation of Fundamental Rights: The state shall, as necessary, make legal

provisions within three years of the commencement of this Constitution for the implementation of the rights conferred by this Part. 48. Duties of Citizens: The duties of every citizen shall be as follows:- (a) To be loyal to the nation and protect Nepal's nationality, sovereignty, and integrity, (b) To abide by the Constitution and the law, (c) To perform compulsory service as and when required by the state, (d) To protect and preserve public property.

Part-4

Directive Principles, Policies, and Obligations of the State

49. To Serve as Guidance: (1) The directive principles, policies, and obligations mentioned in this Part shall serve as guidance for the governance of the state.

(2) The state shall, as necessary, mobilize resources for the implementation of the principles, policies, and obligations mentioned in this Part. 50. Directive Principles: (1) The political objective of the state shall be to establish a welfare state system by maintaining a just system in all spheres of national life through the rule of law, values and norms of fundamental rights and human rights, gender equality, proportional inclusion, participation, and social justice, while prioritizing Nepal's independence, sovereignty, geographical integrity, and freedom, protecting citizens' person, property, equality, and liberty; to strengthen the federal democratic republican system by conducting relations between federal units based on cooperative federalism, internalizing the principle of proportionality in the governance system based on local autonomy and decentralization, and ensuring conditions for the enjoyment of democratic rights.

(2) The social and cultural objective of the state shall be to end all forms of discrimination, exploitation, and injustice based on religion, culture, rite, custom, tradition, practice, or any other grounds, build a civilized and equitable society, develop social and cultural values based on national pride, democracy, people's orientation, respect for labor, entrepreneurship, discipline, dignity, and tolerance, and strengthen national unity by maintaining social harmony, solidarity, and cohesion while respecting cultural diversity.

(3) The economic objective of the state shall be to achieve rapid economic growth through the maximum mobilization of available means and resources through the participation and development of the public, private, and cooperative sectors, achieve sustainable economic development, end economic inequality through the just distribution of attained achievements, build an exploitation-free society, and develop a socialist-oriented, independent, and prosperous economy by making the national economy self-reliant, independent, and progressive.

(4) The international relations of the state shall be directed towards protecting Nepal's independence, sovereignty, geographical integrity, freedom, and national interest, conducting international relations on the basis of sovereign equality, and enhancing national prestige in the world community. 51.

Policies of the State: The state shall adopt the following policies: (a) Policies relating to National Unity and National Security: (1) Preserving Nepal's independence, sovereignty, geographical integrity, and freedom while maintaining national unity inviolable, (2) Promoting national unity by maintaining mutual harmony, tolerance, and solidarity among various castes, ethnicities, religions, languages, cultures, and sects, and developing cooperative relations between federal units, (3) Developing a national security system and making arrangements for peace and security, (4) Guaranteeing comprehensive human security, (5) Making the Nepali Army, Nepal Police, Armed Police Force, Nepal, and all other security bodies strong, robust, professional, inclusive, and people-accountable based on national security policy, (6) Making citizens ready and capable to serve the nation as required by national needs, (7) Making appropriate use of the knowledge, skills, and experience of former employees, soldiers, police, and other former public servants in the national interest. (b) Policies relating to Political and Governance System: (1) Guaranteeing the supreme interest and

development of the people through economic, social, and cultural transformation while protecting, strengthening, and developing (1) Ensuring the condition that everyone can work, making the labor force, which is the main socio-economic strength of the country, skilled and professional, and enhancing employment domestically; (2) Guaranteeing social security while ensuring the fundamental rights of all workers in accordance with the concept of decent work; (3) Ending all forms of labor exploitation, including child labor; (4) Promoting workers' participation in management while maintaining a harmonious relationship between workers and entrepreneurs; (5) Regulating and managing the foreign employment sector to make it exploitation-free, safe, and orderly, and to guarantee employment and rights of workers; (6) Encouraging the investment of capital, skills, technology, and experience earned from foreign employment in productive sectors within the country. (ñ) Policy regarding Social Justice and Inclusion: (1) Giving priority in employment to single women in helpless conditions based on skill, capability, and qualification, while making appropriate provisions for their livelihood; (2) Rehabilitating, protecting, and empowering women at risk, those socially and family excluded, and victims of violence, making them self-reliant; (3) Ensuring access to necessary services and facilities during reproductive conditions; (4) Economically valuing work and contributions such as childcare and family care; (5) Giving primary consideration to the best interests of the child; (6) Identifying freed Kamaiyas, Kamlaharis, Harawas, Charawas, Haliyas, landless, and squatters, and rehabilitating them by providing housing land for settlement and agricultural land or employment for livelihood; (7) Enhancing youth participation in national development, creating an environment for the full exercise of political, economic, social, and cultural rights, providing special opportunities in areas including education, health, and employment for youth empowerment and development, fostering personality development, and providing suitable opportunities for contribution to the comprehensive development of the state; (8) Ensuring the right of indigenous nationalities to live with dignity, including their identity, by making special provisions for opportunities and benefits, ensuring their participation in decisions concerning their community, and preserving and promoting the traditional knowledge, skills, culture, social traditions, and experience of indigenous nationalities and local communities; (9) Making special provisions for opportunities and benefits for minority communities to exercise their social and cultural rights while maintaining their identity; (10) Making special provisions for equal distribution of economic, social, and cultural opportunities and benefits for the Madhesi community, Muslims, and backward classes, and for the protection, upliftment, empowerment, and development opportunities and benefits of the disadvantaged citizens within such communities; (11) Making special provisions for opportunities and benefits for the protection, upliftment, empowerment, development, and fulfillment of basic needs of citizens from oppressed and backward regions; (12) While providing social security and social justice, giving priority to the economically disadvantaged within all genders, regions, and communities; (13) Making planned investment in sports and athletes to prepare healthy, capable, and disciplined citizens, and developing sports as a means to strengthen national unity and enhance national prestige in the international arena; (14) Making the investment and role of community-based and national or international non-governmental organizations accountable and transparent, adopting a single-window system for the establishment, approval, operation, regulation, and management of such organizations, and involving such organizations only in areas of national need and priority. (T) Policy regarding Justice and Penal System: (1) Making the administration of justice speedy, accessible, economical, impartial, effective, and accountable to the people; (2) Adopting alternative measures such as mediation and arbitration for the settlement of disputes of a general nature; (3) Adopting effective measures for the control of corruption and irregularities in all sectors, including political, administrative, judicial, and social. (Th) Policy regarding Tourism: Developing an environment-friendly tourism industry as a vital foundation of the national economy through the identification, conservation, promotion, and dissemination of Nepal's historical, cultural, religious, archaeological, and natural heritages; creating the necessary environment and policies for the

development of tourism culture; and prioritizing local people in the distribution of benefits from the tourism industry. (D) Policy regarding International Relations: (1) Conducting an independent foreign policy based on the Charter of the United Nations, the principles of non-alignment, Panchsheel, international law, and the norms of world peace, while actively safeguarding the sovereignty, territorial integrity, independence, and national interest of Nepal, keeping the supreme interest of the nation in mind; (2) Reviewing past treaties and making treaties and agreements based on equality and mutual interest.

52. Duties of the State: It shall be the duty of the State to protect and promote fundamental rights and human rights, to follow the directive principles of the State, and to progressively implement the policies of the State, while keeping intact the freedom, sovereignty, territorial integrity and independence of Nepal, and to make Nepal prosperous and developed. 53. Submission of Report: The Government of Nepal shall submit an annual report to the President, including the work done and achievements made regarding the implementation of the directive principles, policies, and obligations of the State mentioned in this Part, and the President shall arrange to submit such report to the Federal Parliament through the Prime Minister. 54. Provision regarding Monitoring: There shall be a committee in the Federal Parliament in accordance with law to monitor and evaluate whether the progressive implementation of the directive principles, policies, and obligations of the State mentioned in this Part is carried out or not. 55. Matters not to be questioned in court: No question shall be raised in any court regarding the implementation or non-implementation of any matter written in this Part. Part-5

Structure of State and Distribution of State Power

56. Structure of State: (1) The basic structure of the Federal Democratic Republic of Nepal shall be of three levels: the Federation, the Province, and the Local Level.

(2) The state power of Nepal shall be exercised by the Federation, Province, and Local Level in accordance with this Constitution and law.

(3) At the time of commencement of this Constitution, there shall be Provinces consisting of the districts as mentioned in Schedule-4 existing in Nepal.

(4) Under the Local Level, there shall be Rural Municipalities, Municipalities, and District Assemblies. The number of wards in a Rural Municipality or Municipality shall be as provided for by Federal law.

(5) Special, protected, or autonomous regions may be created in accordance with Federal law for social-cultural protection or economic development.

(6) The Federation, Province, and Local Level shall protect Nepal's freedom, sovereignty, territorial integrity, independence, national interest, comprehensive development, multi-party competitive democratic republican federal system of governance, human rights and fundamental rights, rule of law, separation of powers and checks and balances, pluralism, equality-based equitable society, inclusive representation, and identity. 57.

Distribution of State Power: (1) The power of the Federation shall be vested in the matters listed in Schedule-5, and such power shall be exercised in accordance with this Constitution and Federal law. (2) The power of the Province shall be vested in the matters listed in Schedule-6, and such power shall be exercised in accordance with this Constitution and Provincial law. (3) The concurrent power of the Federation and the Province shall be vested in the matters listed in Schedule-7, and such power shall be exercised in accordance with this Constitution, Federal law, and Provincial law. (4) The power of the Local Level shall be vested in the matters listed in Schedule-8, and such power shall be exercised in accordance with this

Constitution and law made by the Village Assembly or Municipal Assembly. (5) The concurrent power of the Federation, Province, and Local Level shall be vested in the matters listed in Schedule-9, and such power shall be exercised in accordance with this Constitution, Federal law, Provincial law, and law made by the Village Assembly or Municipal Assembly. (6) When making law pursuant to sub-article (3) or (5), the Provincial Assembly, Village Assembly or Municipal Assembly shall make law not inconsistent with Federal law, and such law made by the Provincial Assembly, Village Assembly or Municipal Assembly shall be invalid to the extent of inconsistency with Federal law. (7) When making law pursuant to sub-article (5), the Village Assembly or Municipal Assembly shall make law not inconsistent with Provincial law, and such law made by the Village Assembly or Municipal Assembly shall be invalid to the extent of inconsistency with Provincial law.

58. Residual Power: The Federation shall have power regarding matters not mentioned in the lists of power of the Federation, Province, or Local Level, or the concurrent list, or not specified as being exercised by any level in this Constitution, in accordance with this Constitution.

59. Exercise of Financial Power: (1) The Federation, Province, and Local Level shall make laws on matters relating to financial power within their respective jurisdiction, prepare annual budgets, make decisions, formulate policies and plans, and implement them. (2) The Federation may make necessary policies, standards, and laws on matters in the concurrent list and other areas of financial power, applicable to the Province as well. (3) The Federation, Province, and Local Level shall prepare their respective budgets, and the time for presenting the budget by the Province and Local Level shall be as provided for by Federal law. (4) The Federation, Province, and Local Level shall make arrangements for the equitable distribution of benefits derived from the use or development of natural resources.

A certain portion of such benefits shall be distributed, in the form of royalties, services, or goods, to the project-affected area and local community in accordance with law.

(5) When the Federation, Province, and Local Level use natural resources, if the local community wishes to invest, priority shall be given for investment of a share as provided for by law, based on the nature and size of the investment.

(6) The right to take foreign assistance and loans shall vest in the Government of Nepal. Such assistance or loans shall be taken in a manner that ensures the macroeconomic stability of the country.

(7) Provisions relating to budget deficit management and other financial discipline of the Federation, Province, and Local Level shall be in accordance with Federal law.

60. Distribution of Revenue Sources: (1) The Federation, Province, and Local Level may levy taxes and collect revenue from sources within their respective financial jurisdictions. Provided that, in matters within the concurrent list and matters not falling within the list of any level, the provision for levying taxes and collecting revenue shall be as determined by the Government of Nepal.

(2) The Government of Nepal shall make arrangements for the equitable distribution of revenue collected by it to the Federation, Province, and Local Level.

(3) The amount of fiscal transfer receivable by the Province and Local Level shall be as recommended by the National Natural Resources and Finance Commission.

(4) The Government of Nepal shall distribute fiscal equalization grants to the Province and Local Level based on expenditure needs and revenue capacity.

(5) The Province shall distribute fiscal equalization grants from grants received from the Government of Nepal and revenue raised from its own sources to the subordinate Local Level, in accordance with Provincial law,

based on expenditure needs and revenue capacity.

(6) Provisions relating to the distribution of conditional grants, matching grants, or special grants for other purposes provided by the Government of Nepal from the Federal Consolidated Fund shall be in accordance with Federal law.

(7) The distribution of revenue among the Federation, Province, and Local Level shall be done in a balanced and transparent manner.

(8) While making a Federal Act regarding revenue distribution, attention shall be paid to matters including: national policy, national necessity, autonomy of Province and Local Level, services to be provided by Province and Local Level to the people and the financial rights granted to them, capacity to collect revenue, potential and utilization of revenue, assistance required in development and construction, regional imbalance, reduction of poverty and inequality, ending deprivation, and helping meet contingent works and temporary needs. Part-6

President and Vice-President

61.

President: (1) There shall be a President in Nepal. (2) The President shall be the Head of State of Nepal. He/she shall perform his/her functions in accordance with this Constitution and Federal law. (3) The President shall promote the national unity of Nepal. (4) It shall be the primary duty of the President to abide by and protect the Constitution. 62. Election of the President: (1) The election of the President shall be held by an electoral college comprising the members of the Federal Parliament and the members of the Provincial Assemblies as electors. The voting weight of the members of the Federal Parliament and the members of the Provincial Assemblies shall differ in accordance with Federal law. (2) Notwithstanding anything written in sub-article (1), it shall not be deemed to impede the formation of the electoral college for the purpose of the election of the President solely due to the non-election of the Provincial Assembly in any Province. (3) The person who receives a majority of the total votes of the then existing electoral college pursuant to sub-article (1) shall be elected as the President. (4) If no candidate obtains a majority pursuant to sub-article (3), a vote shall be held between the two candidates obtaining the highest number of votes, and the candidate obtaining more than fifty percent of the total votes in such vote shall be elected as the President. (5) If, even from the vote pursuant to sub-article (4), no candidate obtains more than fifty percent of the total votes, a re-vote shall be held. The candidate who obtains the highest number of total valid votes cast in such vote shall be elected as the President. (6) If a person holding a political office filled by election, nomination, or appointment is elected President pursuant to this article, his/her such office shall automatically fall vacant. (7) The election of the President and other provisions relating thereto shall be in accordance with Federal law. 63. Term of Office of President: (1) The term of office of the President shall be five years from the date of election. (2) The President whose term of office under sub-article (1) has expired shall perform the functions in accordance with this Constitution until the next elected President assumes office. 64.

Qualification for President: (1) A person having the following qualifications shall be qualified for being the President:- (a) Being qualified to become a member of the Federal Parliament, (b) Having completed at least forty-five years of age, and (c) Not being disqualified by any law. (2) Notwithstanding anything written in sub-article (1), a person who has already been elected President twice shall not be eligible to be a candidate for the election of the President. 65. Vacation of Office of President: The office of the President shall be vacated in any of the following circumstances:- (a) If he/she submits a written resignation to the

Vice-President, (b) If an impeachment motion against him/her is passed pursuant to article 101, (c) If his/her term of office expires, (d) If he/she dies. 66. Functions, Duties, and Powers of President: (1) The President shall exercise the powers and perform the duties conferred on him/her in accordance with this Constitution or Federal law. (2) While exercising powers or performing duties pursuant to sub-article (1), except for actions specifically provided for in this Constitution or Federal law to be done on the recommendation of a body or office holder, any other action performed by the President shall be on the recommendation and with the consent of the Council of Ministers. Such recommendation and consent shall be submitted through the Prime Minister. (3) The certification of decisions or orders made in the name of the President pursuant to sub-article (2) and related letters patent shall be in accordance with Federal law. 67. Vice-President: (1) There shall be a Vice-President in Nepal. (2) In the absence of the President, the functions to be performed by the President shall be performed by the Vice-President. (3) If a person holding a political office filled by election, nomination, or appointment is elected to the office of Vice-President, his/her such office shall automatically fall vacant. 68. Vacation of Office of Vice-President: The office of the Vice-President shall be vacated in any of the following circumstances:- (a) If he/she submits a written resignation to the President, (b) If an impeachment motion against him/her is passed pursuant to article 101, (c) If his/her term of office expires, (d) If he/she dies. 69. Other Provisions relating to Vice-President: The provisions relating to the qualification, election procedure, and term of office of the Vice-President shall be the same as those of the President. 70. President and Vice-President to be of different Gender or Community: The election of the President and the Vice-President under this Constitution shall be done so that they represent different genders or communities. 71.

Oath of President and Vice-President: Before assuming their offices, the President and the Vice-President shall take an oath of office and secrecy in accordance with Federal law, the President before the Chief Justice and the Vice-President before the President. 72. Remuneration and Facilities of President and Vice-President: The remuneration and other facilities of the President and the Vice-President shall be as provided for by a Federal Act, and until such Act is made, as determined by the Government of Nepal. 73. Offices of President and Vice-President: (1) There shall be separate offices for the performance of the work of the President and the Vice-President. (2) The Government of Nepal shall arrange for the necessary staff and other provisions required to conduct the work of the office under sub-article (1). Part-7 Federal Executive 74. Form of Governance: The form of governance of Nepal shall be a multi-party, competitive, federal democratic republican parliamentary system of governance based on pluralism. 75. Executive Power: (1) The executive power of Nepal shall be vested in the Council of Ministers in accordance with this Constitution and law. (2) The responsibility for the general direction, control, and conduct of the governance of Nepal shall be vested in the Council of Ministers, subject to this Constitution and law. (3) All works relating to the federal executive of Nepal shall be done in the name of the Government of Nepal. (4) The certification of decisions or orders made in the name of the Government of Nepal pursuant to sub-article (3) and related letters patent shall be in accordance with Federal law. 76.

Formation of Council of Ministers: (1) The President shall appoint the leader of the parliamentary party commanding a majority in the House of Representatives as the Prime Minister, and the Council of Ministers shall be formed under his/her chairpersonship. (2) In the absence of a clear majority of any party in the House of Representatives pursuant to sub-article (1), the President shall appoint as Prime Minister a member of the House of Representatives who can command a majority with the support of two or more parties represented in the House of Representatives. (3) If the Prime Minister cannot be appointed pursuant to sub-article (2) within thirty days from the date of declaration of the final results of the election of the House of Representatives, or if the Prime Minister so appointed fails to secure a vote of confidence pursuant to

sub-article (4), the President shall appoint the leader of the parliamentary party of the party having the highest number of members in the House of Representatives as the Prime Minister. (4) The Prime Minister appointed pursuant to sub-article (2) or (3) must secure a vote of confidence from the House of Representatives within thirty days from the date of such appointment. (5) If the Prime Minister appointed pursuant to sub-article (3) fails to secure a vote of confidence pursuant to sub-article (4), the President shall appoint a member under sub-article (2) as Prime Minister if such member presents a basis for securing a vote of confidence in the House of Representatives. (6) The Prime Minister appointed pursuant to sub-article (5) must secure a vote of confidence pursuant to sub-article (4). (7) If the Prime Minister appointed pursuant to sub-article (5) fails to secure a vote of confidence, or if the Prime Minister cannot be appointed, the President shall, on the recommendation of the Prime Minister, dissolve the House of Representatives and fix a date for the election of another House of Representatives so that the election is completed within six months. (8) The process relating to the appointment of the Prime Minister pursuant to this article must be completed within thirty-five days from the date of declaration of the final results of the election of the House of Representatives or the vacation of the office of the Prime Minister, as the case may be, under this Constitution. (9) The President shall, on the recommendation of the Prime Minister, form a Council of Ministers consisting of a maximum of twenty-five Ministers including the Prime Minister, from among the members of the Federal Parliament, in accordance with the principle of inclusiveness.

Explanation: For the purposes of this Part, "Minister" shall mean a Deputy Prime Minister, Minister, Minister of State, and Assistant Minister.

(10) The Prime Minister and Ministers shall be collectively responsible to the Federal Parliament, and Ministers shall be individually responsible to the Prime Minister and the Federal Parliament for the work of their respective ministries. 77. Vacation of Office of Prime Minister and Minister: (1) The office of the Prime Minister shall be vacated in any of the following circumstances:-

- (a) If he/she submits a written resignation to the President,
- (b) If a motion of confidence is not passed, or a motion of no-confidence against him/her is passed, pursuant to article 100,
- (c) If he/she ceases to be a member of the House of Representatives,
- (d) If he/she dies.

(2) The office of a Minister shall be vacated in any of the following circumstances:-

- (a) If he/she submits a written resignation to the Prime Minister,
- (b) If the Prime Minister relieves him/her from office,
- (c) If the office of the Prime Minister is vacated pursuant to clause (a), (b), or (c) of sub-article (1),
- (d) If he/she dies.

(3) If the office of the Prime Minister is vacated pursuant to sub-article (1), the same Council of Ministers shall conduct the work until another Council of Ministers is formed. Provided that, if the Prime Minister dies, the senior-most Minister shall function as Prime Minister until another Prime Minister is appointed. 78. Person not being a Member of Federal Parliament becoming Minister: (1) Notwithstanding anything written in sub-article (9) of article 76, the President may, on the recommendation of the Prime Minister, appoint a person who is not a member of the Federal Parliament as a Minister.

(2) The Minister appointed pursuant to sub-article (1) must obtain membership of the Federal Parliament within six months from the date of taking oath.

(3) If he/she fails to obtain membership of the Federal Parliament within the period under sub-article (2),

he/she shall not be eligible for re-appointment to the office of Minister for the duration of the then existing House of Representatives.

(4) Notwithstanding anything written in sub-article (1), a person who was defeated in the election of the then existing House of Representatives shall not be eligible for appointment to the office of Minister pursuant to sub-article (1) for the term of such House of Representatives. 79. Remuneration and other Facilities of Prime Minister and Minister: The remuneration and other facilities of the Prime Minister and Minister shall be as provided for by a Federal Act. Until such Act is made, it shall be as determined by the Government of Nepal. 80.

Oath: The Prime Minister, Deputy Prime Minister, and Minister shall take an oath of office and secrecy before the President, and the Minister of State and Assistant Minister shall take such oath before the Prime Minister, in accordance with Federal law, before assuming their offices. 81. Information to President: The Prime Minister shall inform the President of the following matters:- (a) Decisions of the Council of Ministers, (b) Bills to be presented to the Federal Parliament, (c) Other necessary details requested by the President regarding matters mentioned in clauses (a) and (b), and (d) Current situation of Nepal and matters of foreign relations. 82. Conduct of Business of Government of Nepal: (1) The allocation of business and the conduct of business of the Government of Nepal shall be in accordance with the Rules approved by the Government of Nepal. (2) No question shall be raised in any court as to whether or not the Rules under sub-article (1) have been followed. Part-8 Federal Legislature 83. Federal Legislature: There shall be a Federal Legislature consisting of two Houses named the House of Representatives and the National Assembly, which shall be called the Federal Parliament. 84. Formation of House of Representatives: (1) The House of Representatives shall consist of two hundred seventy-five members as follows:- (a) One hundred sixty-five members elected under the first-past-the-post electoral system, with one member from each of one hundred sixty-five electoral constituencies created based on amended by the First Amendment. population, geographical suitability, and specificity of Nepal, (b) One hundred ten members elected under the proportional representation electoral system where the whole country is considered as a single electoral constituency, voting for political parties. (2) For the election of the House of Representatives under the proportional representation electoral system, when political parties present candidacies, the provision for representing women, Dalits, indigenous nationalities, Khas Arya, Madhesi, Tharu, Muslims, backward regions, etc., based on the population, shall be on the basis of a closed list in accordance with Federal law. While presenting candidacies, geographical and provincial balance shall also be taken into account.

Explanation: For the purposes of this sub-article, "Khas Arya" shall mean the Kshetri, Brahmin, Thakuri, and Sanyasi (Dashnami) communities. (3) When political parties present candidacies pursuant to sub-article (2), arrangements shall be made to ensure the representation of persons with disabilities as well. (4) The election of members of the House of Representatives under sub-article (1) shall be by secret ballot in accordance with law. (5) Every Nepali citizen who has completed the age of eighteen years shall have the right to vote in any one electoral constituency in accordance with Federal law. (6) A person qualified under article 87 who is entitled to vote in an election for members of the House of Representatives may, subject to Federal law, be a candidate from any electoral constituency. Provided that the same person shall not be a candidate simultaneously in more than one electoral constituency. (7) If a vacancy of any member occurs while more than six months of the term of the House of Representatives remains, such vacancy shall be filled through the same electoral system by which the seat was filled. (8) Notwithstanding anything written elsewhere in this Part, at least one-third of the total number of members elected from each political party represented in the Federal Parliament must be women. If, while electing members under clause (a) of sub-article (1) and clause

(a) of sub-article (2) of article 84, one-third of the members of a political party are not elected women, such political party must, while electing members under clause (b) of sub-article (1), ensure that at least one-third of the total members elected to the Federal Parliament from its party are women. (9) The election of the House of Representatives and other matters relating thereto shall be in accordance with Federal law. 85. Term of House of Representatives: (1) The term of the House of Representatives shall be five years, unless dissolved earlier in accordance with this Constitution. (2) Notwithstanding anything written in sub-article (1), during the time a declaration or order of a state of emergency is in force, the term of the House of Representatives may be extended in accordance with a Federal Act, not exceeding one year. (3) The term of the House of Representatives extended pursuant to sub-article (2) shall automatically expire six months after the date of revocation of the declaration or order of the state of emergency. 86.

Formation of National Assembly and Term of Members: (1) The National Assembly shall be a permanent House. (2) The National Assembly shall consist of fifty-nine members as follows:- (a) Fifty-six members elected, in accordance with Federal law, by an electoral college consisting of members of the Provincial Assembly, Chairpersons and Vice-Chairpersons of Rural Municipalities, and Mayors and Deputy Mayors of Municipalities, with different voting weights for members of Provincial Assembly, Chairpersons and Vice-Chairpersons of Rural Municipalities, and Mayors and Deputy Mayors of Municipalities, from each Province, comprising at least three women, one Dalit, and one person with a disability or minority, totaling eight members per Province, (b) Three members nominated by the President on the recommendation of the Government of Nepal, comprising at least one woman. (3) The term of office of members of the National Assembly shall be six years. The term of office of one-third of the members of the National Assembly shall expire every two years. Provided that, when determining the term of office for members for the first time after the commencement of this Constitution, the term shall be determined by lottery: one-third as two years, another one-third as four years, and the remaining one-third as six years. (4) When calculating the term of office of members of the National Assembly for the first time after the commencement of this Constitution, the term of office of all members shall be deemed to have commenced from the day the first meeting of the National Assembly is held. (5) The vacancy arising in the National Assembly shall be filled for the remainder of the term by the same method of election or nomination by which the member vacating the seat was elected or nominated. (6) Other provisions relating to the election of members of the National Assembly shall be in accordance with Federal law. 87. Qualification for Membership: (1) A person having the following qualifications shall be qualified to become a member of the Federal Parliament:- (a) A citizen of Nepal, (b) Have completed twenty-five years of age for the House of Representatives and thirty-five years for the National Assembly, (c) Not convicted of a criminal offense involving moral turpitude, (d) Not disqualified by any Federal law, and (e) Not holding any office of profit.

Explanation: For the purposes of this clause, "office of profit" shall mean any office, other than a political office filled by election or nomination, which receives remuneration or financial benefits from a government fund.

(2) No person may be a member of both Houses simultaneously.

(3) If a person holding a political office filled by election, nomination, or appointment is elected or nominated as a member of the Federal Parliament under this Part, his/her such office shall automatically fall vacant from the day of taking the oath of office of member of the Federal Parliament. 88. Oath: Every member of each House of the Federal Parliament must, before participating for the first time in a meeting of the House or any of its committees, take an oath in accordance with Federal law. 89. Vacation of Seat: The seat of a member of the Federal Parliament shall be vacated in any of the following circumstances:-

- (a) If he/she submits a written resignation to the Speaker or Chairperson,
- (b) If he/she lacks or ceases to have the qualification under article 87,
- (c) If the term of the House of Representatives or the term of office of a National Assembly member expires,
- (d) If he/she is absent from ten consecutive meetings without giving notice to the concerned House,
- (e) If the party on whose ticket he/she was elected as a member informs, in accordance with Federal law, that he/she has defected from the party,

(f) If he/she dies. 90. Decision on Disqualification of Member: If a question arises as to whether a member of the Federal Parliament is or has become disqualified under article 87, the final decision on that question shall be given by the Constitutional Bench of the Supreme Court. 91. Speaker and Deputy Speaker of House of Representatives: (1) Within fifteen days from the date of commencement of the first meeting of the House of Representatives, the members of the House of Representatives shall elect the Speaker and Deputy Speaker of the House of Representatives from among themselves.

(2) When conducting the election pursuant to sub-article (1), one of the Speaker and Deputy Speaker of the House of Representatives shall be a woman, and the Speaker and Deputy Speaker of the House of Representatives shall be representatives of different parties.

Provided that, if there is no representation of more than one party in the House of Representatives, or if there is representation but no candidacy is filed, it shall not be a bar for members of the same party to become Speaker and Deputy Speaker of the House of Representatives.

(3) If the office of the Speaker or Deputy Speaker of the House of Representatives becomes vacant, the members of the House of Representatives shall fill the vacancy by electing the Speaker or Deputy Speaker of the House of Representatives from among themselves.

(4) In the absence of the Speaker of the House of Representatives, the Deputy Speaker shall preside over the House of Representatives.

(5) In the event that the Speaker and Deputy Speaker of the House of Representatives have not been elected or both offices are vacant, the meeting of the House of Representatives shall be presided over by the senior-most member in terms of age among the members present.

(6) The office of the Speaker or Deputy Speaker of the House of Representatives shall be vacated in any of the following circumstances:-

- (a) If he/she ceases to be a member of the House of Representatives,

Provided that, in the event of dissolution of the House of Representatives, the Speaker and Deputy Speaker of the House of Representatives in office shall continue in their offices until the day preceding the filing of candidacies for the next election to the House of Representatives.

- (b) If he/she submits a written resignation,
- (c) If a resolution stating that he/she has not conducted himself/herself in accordance with the office is passed by a two-thirds majority of the total number of members of the House of Representatives then existing.

(7) The meeting discussing the resolution that the Speaker of the House of Representatives has not conducted himself/herself in accordance with the office shall be presided over by the Deputy Speaker of the House of Representatives. The Speaker of the House of Representatives shall be entitled to participate and vote in the discussion on such resolution. 92.

Chairperson and Vice-Chairperson of National Assembly: (1) Within fifteen days from the date of commencement of the first meeting of the National Assembly, the members of the National Assembly shall elect the Chairperson and Vice-Chairperson of the National Assembly from among themselves. (2) When conducting the election pursuant to sub-article (1), one of the Chairperson and Vice-Chairperson of the National Assembly shall be a woman. (3) If the office of the Chairperson or Vice-Chairperson of the National Assembly becomes vacant, the members of the National Assembly shall fill the vacancy by electing the Chairperson or Vice-Chairperson of the National Assembly from among themselves. (4) In the absence of the Chairperson of the National Assembly, the Vice-Chairperson shall preside over the National Assembly. (5) In the event that the Chairperson and Vice-Chairperson of the National Assembly have not been elected or their offices are vacant, the meeting of the National Assembly shall be presided over by the senior-most member in terms of age among the members present. (6) The office of the Chairperson or Vice-Chairperson of the National Assembly shall be vacated in any of the following circumstances:- (a) If he/she ceases to be a member of the National Assembly, (b) If he/she submits a written resignation, (c) If a resolution stating that he/she has not conducted himself/herself in accordance with the office is passed by a two-thirds majority of the total number of members of the National Assembly then existing. (7) The meeting discussing the resolution that the Chairperson of the National Assembly has not conducted himself/herself in accordance with the office shall be presided over by the Vice-Chairperson of the National Assembly. The Chairperson of the National Assembly shall be entitled to participate and vote in the discussion on such resolution. 93. Summoning and Prorogation of Sessions: (1) The President shall summon a session of the Federal Parliament within thirty days from the date of declaration of the final results of the election to the House of Representatives. Thereafter, the President shall, in accordance with this Constitution, from time to time, summon sessions of both or either House. Provided that the period between the prorogation of one session and the commencement of the next session shall not exceed six months. (2) The President may prorogue the sessions of both or either House of the Federal Parliament. (3) If one-fourth of the total number of members of the House of Representatives make a written request stating that it is desirable to summon a session or meeting 105.

Restriction on discussion: No discussion shall be held in either House of the Federal Parliament on matters having an adverse effect on the adjudication of cases pending before any court of Nepal and on judicial acts performed by a judge in the course of discharging his/her duty. Provided that, this Article shall not be deemed to prevent the expression of any matter relating to the conduct of a judge while discussing a motion of impeachment. 106. Secretary General and Secretaries of the Federal Parliament: (1) The President shall appoint the Secretary General of the Federal Parliament on the joint recommendation of the Speaker of the House of Representatives and the Chairperson of the National Assembly, the Secretary of the House of Representatives on the recommendation of the Speaker, and the Secretary of the National Assembly on the recommendation of the Chairperson of the National Assembly.

(2) The qualifications, functions, duties, powers and other conditions of service of the Secretary General of the Federal Parliament, the Secretary of the House of Representatives and the Secretary of the National Assembly shall be as determined by the federal law. 107. Secretariat of the Federal Parliament: There shall be a Secretariat for conducting and managing the business of the Federal Parliament. The establishment of such Secretariat and other matters relating thereto shall be as determined by federal law. 108. Remuneration: The remuneration and facilities of the Speaker and Deputy Speaker of the House of Representatives, the Chairperson and Vice-Chairperson of the National Assembly, Chairpersons of Committees and members of the Federal Parliament shall be as determined by federal law. Until such law is made, they shall be as determined by the Government of Nepal. Part-9

Federal Legislative Procedure

109. Legislative power of the Federal Parliament: The legislative power of the Federal Parliament shall be as specified in the lists contained in Schedule-5, Schedule-7 and Schedule-9. 110. Manner of introducing Bills:

(1) Subject to this Constitution, a Bill may be introduced in either House of the Federal Parliament.

Provided that a Money Bill shall be introduced only in the House of Representatives. (2) A Money Bill, and a Bill concerning the Nepal Army, Nepal Police or Armed Police Force, Nepal or any security agency shall be introduced only as a Government Bill. (3) "Money Bill" means a Bill that contains provisions dealing with all or any of the following subjects: (a) The imposition, collection, abolition, remission, alteration or regulation of taxes; (b) The preservation of the Federal Consolidated Fund or any other Federal Government Fund, the deposit of money into such Fund or the appropriation or expenditure of money from such Fund, or the reduction, increase or abolition of any sum sought to be appropriated or expended; (c) The regulation of borrowing by the Government of Nepal or the giving of any guarantee by it, or the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of Nepal; (d) The custody, investment of all revenue, money raised by loan repayment and grant money receivable by any Federal Government Fund, or the accounting or auditing of the accounts of the Government of Nepal; and (e) Other incidental matters directly connected with clauses (a), (b), (c) or (d). Provided that a Bill shall not be deemed to be a Money Bill by reason only that it provides for the imposition of fees or charges such as license fees, application fees, renewal fees, or any penalty or imprisonment. (4) If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker shall be final. 111. Manner of passing Bills: (1) A Bill passed by one House of the Federal Parliament shall be transmitted as soon as possible to the other House, and after it has been passed by that House, it shall be presented to the President for certification. (2) A Money Bill passed by the House of Representatives shall be transmitted to the National Assembly.

The National Assembly shall, after deliberating on the Bill, return it to the House of Representatives with suggestions, if any, within fifteen days of receiving the Bill.

(3) In the case of a Bill returned with suggestions pursuant to sub-article (2), the House of Representatives shall, after deliberating on it, incorporate such suggestions as it deems appropriate and present it to the President for certification.

(4) If the National Assembly does not return the Money Bill within fifteen days of its receipt pursuant to sub-article (2), the House of Representatives may present it to the President for certification.

(5) A Bill, other than a Money Bill, passed by the House of Representatives and transmitted to the National Assembly shall be passed by the National Assembly or returned with suggestions within two months of its receipt. If the National Assembly does not return such Bill within that period, the House of Representatives may, by a decision of a majority of the members present at that time, present the Bill to the President for certification.

(6) If a Bill, other than a Money Bill, passed by one House is rejected by the other House, or passed with amendments, the Bill shall be returned to the House in which it originated.

(7) If a Bill rejected by the National Assembly or returned with amendments pursuant to sub-article (6) is reconsidered by the House of Representatives and is passed again, in its original form or with amendments, by a majority of the members present at that time, such Bill shall be presented to the President for certification.

(8) If a Bill returned from the House of Representatives with amendments to the National Assembly pursuant to sub-article (6) is also passed again by the National Assembly, with such amendments, by a majority of the members present at that time, it shall be presented to the President for certification.

(9) The following Bills shall be presented to a joint sitting of both Houses, and if the joint sitting passes the Bill in its original form or with amendments, the House in which the Bill originated shall present it to the President for certification:

- (a) A Bill passed by the National Assembly but rejected by the House of Representatives; or
- (b) A Bill returned by the House of Representatives with amendments to the National Assembly but the National Assembly has failed to agree to such amendments.

(10) If a Bill under consideration before a House lapses at the end of a session, proceedings on such Bill may be had in the next session.

Provided that where a Bill has been introduced in the House of Representatives and is pending, or has been passed by the House of Representatives and is pending before the National Assembly, if the House of Representatives is dissolved or its term expires, such Bill shall lapse. 112. Withdrawal of Bills: The mover of a Bill may withdraw the Bill with the consent of the House. 113. Certification of Bills: (1) A Bill to be presented to the President for certification pursuant to Article 111 shall be certified and presented by the Speaker or Chairperson of the House in which the Bill originated. Provided that in the case of a Money Bill, the Speaker shall certify it as a Money Bill.

(2) The President shall certify a Bill presented for certification pursuant to this Article within fifteen days and shall give notice thereof to both Houses as soon as possible.

(3) If the President considers that a Bill, other than a Money Bill presented for certification, requires reconsideration, He/She shall, within fifteen days of its presentation, return the Bill with a message to the House in which it originated.

(4) If the President returns a Bill with a message, and both Houses reconsider the Bill and pass it again in its original form or with amendments and present it again, the President shall certify it within fifteen days of such presentation.

(5) After certification by the President, the Bill becomes an Act. 114. Ordinance: (1) If, at any time, except when both Houses of the Federal Parliament are in session, circumstances exist requiring immediate action, the President may, on the recommendation of the Council of Ministers, promulgate an Ordinance.

(2) An Ordinance promulgated under sub-article (1) shall have the same force and effect as an Act. Provided that every such Ordinance:

- (a) Shall be laid before both Houses of the Federal Parliament at the session that commences after its promulgation and shall automatically cease to be in force if not approved by both Houses;
- (b) May be revoked at any time by the President; and
- (c) Shall automatically cease to be in force sixty days after the day on which both Houses have met, if it has not ceased or been revoked pursuant to clause (a) or (b).

Explanation: For the purpose of this sub-article, "the day on which both Houses have met" shall be deemed to be the day on which the session of both Houses of the Federal Parliament commences or the day on which a meeting of either House of the Federal Parliament is held, and where the meetings of the Houses of

the Federal Parliament are held on different dates, it means the later date on which a meeting of either House is held. Part-10

Federal Financial Procedures

115. No tax or loan to be imposed or raised: (1) No tax shall be levied and collected except in accordance with law.

(2) The Government of Nepal shall neither raise any loan nor give any guarantee except in accordance with federal law. 116. Federal Consolidated Fund: Except for trust funds, all revenues received by the Government of Nepal, all loans raised on the security of revenues, all moneys received from the repayment of any loan made under the authority of an Act, and any other moneys received by the Government of Nepal shall, unless otherwise provided by a federal Act, be credited to a single government fund called the Federal Consolidated Fund. 117. Expenditure from Federal Consolidated Fund or Federal Government Fund: No money shall be drawn from the Federal Consolidated Fund or any other Federal Government Fund except as follows:

- (a) Money charged on the Federal Consolidated Fund;
- (b) Money to be spent under a Federal Appropriation Act;
- (c) Money to be spent under a federal Act as advances while an Appropriation Bill is pending; or
- (d) Money to be spent under a Federal Vote on Credit Act containing only a statement of expenditure in special circumstances. Provided that in the case of the Federal Contingency Fund, it shall be in accordance with Article 124. 118.

Charges on Federal Consolidated Fund: The following expenditures shall be charged on the Federal Consolidated Fund and no approval of the Federal Parliament shall be required for such expenditure: (a) The amount of remuneration and facilities of the President and Vice-President; (b) The amount of remuneration and facilities to be provided to the Chief Justice of Nepal, justices of the Supreme Court and members of the Judicial Council; (c) The amount of remuneration and facilities to be provided to the Speaker and Deputy Speaker of the House of Representatives and the Chairperson and Vice-Chairperson of the National Assembly; (d) The amount of remuneration and facilities to be provided to the chiefs and office-bearers of constitutional bodies; (e) The amount of remuneration and facilities of the Provincial Head; (f) The administrative expenses of the Offices of the President or Vice-President, the Supreme Court, the Judicial Council, constitutional bodies and the Office of the Provincial Head; (g) Charges related to the debt of the liability of the Government of Nepal; (h) The amount payable pursuant to a judgment or order of a court against the Government of Nepal; and (i) Any amount charged on the Federal Consolidated Fund by federal law. 119. Estimates of Revenues and Expenditure: (1) The Finance Minister of the Government of Nepal shall, in respect of each financial year, present before a joint sitting of both Houses of the Federal Parliament an annual estimate including the following matters: (a) An estimate of revenues; (b) The sums required to be charged on the Federal Consolidated Fund; and (c) The sums required to be spent under a Federal Appropriation Act. (2) When presenting the annual estimate pursuant to sub-article (1), a statement of the expenditure allocated to each Ministry in the previous financial year and whether the targets according to such expenditure were achieved or not shall also be presented. (3) The Finance Minister of the Government of Nepal shall present the estimate of revenues and expenditure referred to in sub-article (1) to the Federal Parliament on the fifteenth day of the month of Jestha each year. 120. Appropriation Act: The sums required for expenditure under the Appropriation Act shall be specified in the relevant heads and included in the Appropriation Bill. 121.

Supplementary Estimates: (1) If in any financial year, the following circumstances arise, the Finance Minister of the Government of Nepal may present supplementary estimates before the House of Representatives: (a) If the sum allocated for any service by the Appropriation Act for the current financial year is insufficient or if there is a need for expenditure on some new service not authorized by the Appropriation Act for that year; or (b) If an expenditure exceeding the sum authorized by the Appropriation Act has been incurred during the current financial year. (2) The sums included in the supplementary estimates shall be specified in the relevant heads and included in a Supplementary Appropriation Bill. 122. Advance Grants: (1) Notwithstanding anything contained elsewhere in this Part, when an Appropriation Bill is pending, a portion of the estimated expenditure for the financial year may be spent in advance in accordance with a federal Act. (2) An Advance Grant Bill shall not be presented until the estimate of revenues and expenditure under Article 119 is presented, and the amount of the grant shall not exceed one-third of the estimated expenditure for the financial year. (3) The sums expended under the Federal Advance Grant Act shall be included in the Appropriation Bill. 123. Vote on Credit: Notwithstanding anything contained elsewhere in this Part, if, due to natural causes or apprehension of external aggression or internal disturbance or other reasons, a situation of crisis arises, making it impracticable or undesirable for the security or interest of the State to provide the details required under sub-article (1) of Article 119, the Finance Minister of the Government of Nepal may present before the House of Representatives a Vote on Credit Bill containing only a statement of expenditure. 124. Federal Contingency Fund: (1) A fund called the Contingency Fund may be established under a federal Act, and sums determined from time to time under a federal Act shall be credited to such Fund. (2) The Fund under sub-article (1) shall be under the control of the Government of Nepal, and the Government of Nepal may incur expenditure from such Fund for contingency purposes. (3) The sum expended under sub-article (2) shall be reimbursed as soon as possible in accordance with a federal Act. 125. Act relating to Financial Procedure: The transfer of sums appropriated from one head to another under a federal Act and other provisions relating to financial procedure shall be as determined by federal law. Part-11 Judiciary 126.

Judicial power to be exercised by courts: (1) The judicial power of Nepal shall be exercised by courts and judicial bodies in accordance with this Constitution, other laws and the recognized principles of justice. (2) Every person shall comply with the orders or decisions given by a court in the course of adjudicating cases. 127. Courts: (1) The following courts shall exist in Nepal: (a) Supreme Court, (b) High Courts, and (c) District Courts. (2) In addition to those mentioned in sub-article (1), judicial bodies at the local level may be established to hear cases or other bodies may be formed as necessary to adopt alternative dispute resolution mechanisms, in accordance with law. 128. Supreme Court: (1) There shall be one Supreme Court in Nepal. (2) The Supreme Court shall be a court of record. All courts and judicial bodies shall be subordinate to the Supreme Court except where otherwise provided in this Constitution. The Supreme Court shall have the final authority to interpret the Constitution and the law. (3) The Supreme Court may inspect, supervise and give necessary directions regarding the administration of justice or management of courts, specialized courts or other judicial bodies subordinate to itself and within its jurisdiction. (4) The interpretation of the Constitution or the legal principle enunciated by the Supreme Court in the course of hearing a case shall be binding on everyone. If anyone obstructs the administration of justice by the Supreme Court or a subordinate court or disobeys an order or judgment, the Supreme Court may initiate contempt proceedings and impose punishment in accordance with law. 129.

Appointment and Qualifications of Chief Justice and Justices of Supreme Court: (1) The Supreme Court shall, in addition to the Chief Justice of Nepal, consist of a maximum of twenty Justices. (2) The Chief Justice shall be appointed by the President on the recommendation of the Constitutional Council, and other Justices of the Supreme Court shall be appointed by the President on the recommendation of the Judicial Council. (3) A

person who has served as a Justice of the Supreme Court for at least three years shall be qualified for appointment to the office of Chief Justice. (4) The term of office of the Chief Justice shall be six years. (5) A Nepali citizen who holds a bachelor's degree in law and has served as the Chief Judge or Judge of a High Court for at least five years, or who holds a bachelor's degree in law and has continuously practiced law as a Senior Advocate or Advocate for at least fifteen years, or who has continuously worked for at least fifteen years in the field of justice or law and attained eminence as a distinguished jurist, or who has served for at least twelve years in a gazetted first class or higher post in the judicial service, shall be deemed qualified for appointment to the office of Justice of the Supreme Court. Explanation: For the purpose of this sub-article, the period served as Chief Judge or Judge of an Appellate Court prior to the commencement of this Constitution shall be deemed to be the period served as Chief Judge or Judge of a High Court. (6) If the office of Chief Justice is vacant, or if the Chief Justice is unable to perform the duties of his/her office for any reason, or if the Chief Justice is absent from the Supreme Court due to leave or absence from Nepal, the senior-most Justice of the Supreme Court shall act as acting Chief Justice. 130.

Conditions of Service and Facilities of Chief Justice and Justices: (1) The Chief Justice and Justices of the Supreme Court shall be entitled to a pension in accordance with federal law if they resign after serving for at least five years, or upon attaining compulsory retirement, or upon their death. (2) Except as otherwise provided in this Constitution, the remuneration and other conditions of service of the Chief Justice and Justices of the Supreme Court shall be as determined by federal law. (3) Notwithstanding anything contained in sub-articles (1) and (2), the Chief Justice or Justice of the Supreme Court who has been removed by impeachment or who has been convicted by a court for a criminal offence involving moral turpitude shall not be entitled to gratuity or pension. (4) The remuneration and other conditions of service of the Chief Justice or a Justice of the Supreme Court shall not be altered to his/her disadvantage. Provided that this provision shall not apply during a state of emergency declared due to extreme economic disarray. 131. Vacation of office of Chief Justice or Justice of Supreme Court: The office of Chief Justice or Justice of the Supreme Court shall become vacant in the following circumstances: (a) If he/she submits a written resignation to the President, (b) If he/she attains the age of sixty-five years, (c) If a motion of impeachment against him/her is passed under Article 101, (d) If the President removes him/her on the recommendation of the Constitutional Council in the case of the Chief Justice, or on the recommendation of the Judicial Council in the case of a Justice of the Supreme Court, on the ground of inability to perform duties due to physical or mental illness, (e) If he/she is convicted by a court for a criminal offence involving moral turpitude, (f) If he/she dies. 132. Chief Justice and Justices of Supreme Court not to be engaged in any other work: (1) The Chief Justice or a Justice of the Supreme Court shall not be engaged or deputed to any office other than that of a judge. Provided that the Government of Nepal may, in consultation with the Judicial Council, depute a Justice of the Supreme Court to work on judicial inquiry or on law or justice-related research or investigation work for a specified period. (2) A person who has once held the office of Chief Justice or Justice of the Supreme Court shall not be eligible for appointment to any government office except where otherwise provided in this Constitution. 133.

Jurisdiction of Supreme Court: (1) Any Nepali citizen may file a petition in the Supreme Court for the declaration of any law or any part thereof as void and invalid, on the ground that it imposes an unreasonable restriction on the fundamental rights conferred by this Constitution or on any other ground, or on the ground that it is inconsistent with this Constitution, or that any law made by a Provincial Assembly is inconsistent with any law made by the Federal Parliament, or that any law made by a Municipal Assembly or Village Assembly is inconsistent with any law made by the Federal Parliament or Provincial Assembly, and the Supreme Court shall have the extraordinary power to declare such law or part thereof invalid and void ab initio or from the date of its decision, if it finds the law inconsistent. (2) The Supreme Court shall have the extraordinary power

to issue necessary and appropriate orders, provide suitable remedies, enforce such rights or settle disputes for the enforcement of the fundamental rights conferred by this Constitution, or for the enforcement of any other legal right for which no other remedy is available or which, though a remedy is available, is deemed inadequate or ineffective, or for the resolution of any constitutional or legal question involved in any dispute of public right or concern. (3) Under the extraordinary jurisdiction under sub-article (2), the Supreme Court may issue appropriate orders including habeas corpus, mandamus, certiorari, prohibition and quo warranto. Provided that the Supreme Court shall not, under this sub-article, intervene in the internal proceedings of the Federal Parliament or Provincial Assembly, the privilege proceedings conducted by the Federal Parliament or Provincial Assembly, and the punishment specified in that regard, except for lack of jurisdiction. (4) Subject to this Constitution, the Supreme Court shall have the power to conduct original proceedings and adjudicate cases, hear appeals, review cases, retry cases, hear petitions or review its own judgments or final orders as provided for in federal law. In conducting such review, it shall be done by justices other than the justice who originally rendered the judgment. (5) The Supreme Court shall have the power to hear appeals against cases where a High Court has exercised original jurisdiction and adjudicated them, and to resolve matters of public importance involving questions of interpretation of the Constitution or law, or cases recommended by a High Court with its opinion that it is appropriate for the Supreme Court to decide. (6) Other powers and procedures of the Supreme Court shall be as determined by federal law. 134.

Transfer of Cases: (1) If cases involving substantially similar questions are pending before the Supreme Court and High Courts, and the Supreme Court considers that such question is of public importance, or if it appears upon the petition of the Attorney General or a party to the case, the Supreme Court shall have the power to withdraw such cases and dispose them of together. (2) If, during the hearing of a case filed in any High Court, special circumstances exist raising questions about judicial impartiality, the Supreme Court may, stating the reasons and grounds, order the transfer of such case from one High Court to another High Court for hearing, in accordance with law. 135. Restriction on pleading: The Chief Justice and Justices of the Supreme Court shall not, after retirement, engage in any pleading, conciliation or mediation work in any office or court. 136. Responsibility of Chief Justice: The Chief Justice shall have the ultimate responsibility for making the administration of justice effective in the Supreme Court and the subordinate courts, specialized courts or other judicial bodies. 137. Formation of Constitutional Bench: (1) There shall be a Constitutional Bench in the Supreme Court. Such Bench shall consist of the Chief Justice and other four justices designated by the Chief Justice on the recommendation of the Judicial Council. (2) In addition to petitions filed under sub-article (1) of Article 133, the Bench under sub-article (1) shall conduct original proceedings and decide the following cases: (a) Disputes relating to jurisdiction between the Federation and a Province, between Provinces, between a Province and a Local Level, and between Local Levels, (b) Disputes relating to the election of members of the Federal Parliament or Provincial Assembly and disqualification of a member of the Federal Parliament or Provincial Assembly. (3) Notwithstanding anything contained in Article 133, if any case pending in the Supreme Court involves a serious question of constitutional interpretation, the Chief Justice may refer such case for hearing by the Bench under sub-article (1). (4) Other provisions relating to the operation of the Constitutional Bench shall be as determined by the Supreme Court. 138. Annual Report: (1) The Supreme Court, Judicial Council and Judicial Service Commission shall, each year, submit their annual reports to the President, and the President shall submit such reports to the Federal Parliament through the Prime Minister. (2) If during the discussion on the annual report presented under sub-article (1), the Federal Parliament deems it necessary to give any suggestions, it may do so to the concerned body through the Ministry of Law and Justice, Government of Nepal. (3) Other provisions relating to the annual report under sub-article (1) shall be as determined by federal law. 139.

High Court: (1) There shall be one High Court in each Province. (2) The High Court may initiate contempt proceedings and impose punishment in accordance with federal law if anyone obstructs the administration of justice by the High Court or its subordinate courts or judicial bodies or disobeys an order or judgment. (3) Each High Court shall, in addition to the Chief Judge, consist of such number of Judges as provided for in federal law. 140. Appointment and Qualifications of Chief Judge and Judges of High Court: (1) The Chief Justice shall, on the recommendation of the Judicial Council, appoint the Chief Judge and Judges of the High Court. (2) A Nepali citizen who holds a bachelor's degree in law and has served as a District Judge for at least five years, or who holds a bachelor's degree in law and has continuously practiced law as a Senior Advocate or Advocate for at least ten years, or who has continuously worked for at least ten years in law teaching, research or any other field related to law or justice, or who has served for at least five years in a post of at least gazetted first class in the judicial service, shall be deemed qualified for appointment to the office of the Chief Judge or Judge of a High Court. (3) While appointing the Chief Judge and Judges of a High Court, among the persons meeting the qualifications under sub-article (2), appointment shall be made based on the ratio of cases decided annually by a District Judge and the assessment of affirmation, reversal or quashing of cases on final decision by a higher court; in the case of a person having served for at least five years in a post of at least gazetted first class in the judicial service, based on the assessment of seniority, qualification and level of performance; and in the case of others, based on assessment of seniority, professional continuity, honesty, professional conduct and contribution in the field of justice and law. (4) If the office of Chief Judge is vacant, or if the Chief Judge is unable to perform the duties of his/her office for any reason, or if the Chief Judge is absent from the High Court due to leave or absence from the Province, the senior-most Judge of the High Court shall act as acting Chief Judge. 141.

Conditions of Service and Facilities of Chief Judge and Judges: (1) Except as otherwise provided in this Constitution, the remuneration and other conditions of service of the Chief Judge and Judges of a High Court shall be as determined by federal law. (2) Notwithstanding anything contained in sub-article (1), the Chief Judge or Judge of a High Court who has been removed following action by the Judicial Council or removed upon conviction by a court for a criminal offence involving moral turpitude shall not be entitled to gratuity or pension. Provided that this provision shall not apply when the Judicial Council has removed a person on the ground of inability to perform duties due to physical or mental illness. (3) The remuneration and other conditions of service of the Chief Judge or a Judge of a High Court shall not be altered to his/her disadvantage. Provided that this provision shall not apply during a state of emergency declared due to extreme economic disarray. 142. Vacation of office of Chief Judge or Judge: (1) The office of the Chief Judge or Judge of a High Court shall become vacant in the following circumstances: (a) If he/she submits a written resignation to the Chief Justice, (b) If he/she attains the age of sixty-three years, (c) If the Chief Justice removes him/her on the recommendation of the Judicial Council on the grounds of incompetence, misbehavior, failure to perform duties honestly, mala fide actions, or serious violation of the code of conduct required to be observed, (d) If the Chief Justice removes him/her on the recommendation of the Judicial Council on the ground of inability to perform duties due to physical or mental illness, (e) If he/she is convicted by a court for a criminal offence involving moral turpitude, (f) If he/she dies. (2) Before removal under clause (c) of sub-article (1), the Judge against whom an allegation is made shall be given a reasonable opportunity to present his/her defense. A Judge against whom proceedings have been initiated shall not perform the duties of his/her office until the conclusion of the proceedings. (3) The removal of the Chief Judge or Judge shall not bar action under federal law for offenses committed while in office. 143. Chief Judge and Judges not to be engaged in any other work and provision regarding transfer: (1) The Chief Judge or a Judge of a High Court shall not be engaged or deputed to any office other than that of a judge.

Provided that the Government of Nepal may, in consultation with the Judicial Council, depute a Judge of a High Court to work on judicial inquiry or on law or justice-related research, investigation or any work of national concern for a specified period. (2) The Chief Justice may, on the recommendation of the Judicial Council, transfer a Judge of a High Court from one High Court to another High Court. 144. Jurisdiction of High Court: (1) The High Court shall have the power to issue necessary and appropriate orders for the enforcement of the fundamental rights conferred by this Constitution, or for the enforcement of any other legal right for which no other remedy is available or which, though a remedy is available, is deemed inadequate or ineffective, or for the resolution of any legal question involved in any dispute of public right or concern. (2) For the purpose of sub-article (1), the High Court may issue any appropriate order including habeas corpus, mandamus, certiorari, prohibition and quo warranto. Provided that the High Court shall not, under this sub-article, intervene in the internal proceedings of the Federal Parliament or Provincial Assembly, the privilege proceedings conducted by the Federal Parliament or Provincial Assembly, and the punishment specified in that regard, except for lack of jurisdiction. (3) The High Court shall have the power to hear original cases, hear appeals and review cases in accordance with federal law. (4) Other powers and procedures of the High Court shall be as determined by federal law. 145. Transfer of Cases: (1) If any case pending before a subordinate court within its jurisdiction involves a question of provincial law and the High Court considers that the resolution of such question is essential for deciding the case, it may withdraw such cases from the subordinate court and either decide the entire case or decide only that question and return the case to the original court. (2) If, during the hearing of a case filed in any District Court, special circumstances exist raising questions about judicial impartiality, the High Court may, stating the reasons and grounds, order the transfer of such case from one district within its jurisdiction to another District Court for hearing, in accordance with federal law. 146.

148. District Court: (1) There shall be one District Court in each district.

(2) Judicial bodies at the local level established under provincial law shall be subordinate to the District Court. The District Court may inspect and supervise its subordinate judicial bodies and give necessary directions.

149. Appointment, Qualifications, Remuneration and other conditions of service of District Judge: (1) The appointment of District Judges shall be made by the Chief Justice on the recommendation of the Judicial Council.

(2) Vacant posts of Judges in District Court shall be filled as follows:

(a) Twenty percent of the vacant posts shall be filled from among officers who hold a bachelor's degree in law and have served for at least three years in a gazetted second class post in the judicial service, based on assessment of seniority, qualification and competence,

(b) Forty percent of the vacant posts shall be filled from among officers who hold a bachelor's degree in law and have served for at least three years in a gazetted second class post in the judicial service, based on an open competitive examination,

(c) The remaining forty percent of the vacant posts shall be filled from among Nepali citizens who hold a bachelor's degree in law and have continuously practiced law as an Advocate for at least eight years, or who hold a bachelor's degree in law and have served for at least eight years in a gazetted post in the judicial service, or who have continuously worked for at least eight years in law teaching, research or any other field related to law or justice, based on an open competitive examination.

(3) The Judicial Service Commission shall, from among persons meeting the qualifications under clauses (b) and (c) of sub-article (2), conduct written and oral competitive examinations in accordance with federal law

and recommend to the Judicial Council for appointment as District Judge based on the order of merit.

(4) The remuneration and other conditions of service of a District Judge shall be as determined by federal law.

(5) The remuneration and other conditions of service of a District Judge shall not be altered to his/her disadvantage.

Provided that this provision shall not apply during a state of emergency declared due to extreme economic disarray.

(6) The office of a District Judge shall become vacant in the following circumstances:

(a) If he/she submits a written resignation to the Chief Justice,

(b) If he/she attains the age of sixty-three years,

(c) If the Chief Justice removes him/her on the recommendation of the Judicial Council on the grounds of incompetence, misbehavior, failure to perform duties honestly, mala fide actions, or serious violation of the code of conduct required to be observed,

(d) If the Chief Justice removes him/her on the recommendation of the Judicial Council on the ground of inability to perform duties due to physical or mental illness,

(e) If he/she is convicted by a court for a criminal offence involving moral turpitude,

(f) If he/she dies.

(7) Before removal under clause (c) of sub-article (6), the District Judge against whom an allegation is made shall be given a reasonable opportunity to present his/her defense. A District Judge against whom proceedings have been initiated shall not perform the duties of his/her office until the conclusion of the proceedings.

(8) The removal of a District Judge shall not bar action under federal law for offenses committed while in office. 150. District Judge not to be engaged in any other work and provision regarding transfer: (1) A District Judge shall not be engaged or deputed to any office other than that of a judge. Provided that the Government of Nepal may, in consultation with the Judicial Council, depute a District Judge to work on judicial inquiry or on law or justice-related research or investigation or election-related work for a specified period.

(2) The Chief Justice may, on the recommendation of the Judicial Council, transfer a District Judge from one District Court to another District Court. 151. Jurisdiction of District Court: (1) Unless otherwise provided in federal law, the District Court shall have the power to conduct original proceedings and adjudicate all cases within its jurisdiction, hear petitions including habeas corpus and

(5) The Chief Attorney shall be the principal legal advisor of the Provincial Government, and it shall be the duty of the Chief Attorney to provide advice and counsel to the Provincial Government or other officials designated by the Provincial Government on constitutional and legal matters.

(6) The Office of the Attorney General shall manage the employees under the Office of the Chief Attorney.

(7) The remuneration and other facilities of the Chief Attorney shall be equivalent to those of a Judge of a High Court. The functions, duties, and powers of the Chief Attorney, as well as other conditions of service, shall be as provided by Provincial law.

161. Provision relating to Conditions of Service and Facilities: The provisions relating to the remuneration, facilities, and conditions of service of Government Attorneys and other employees under the authority of the

Attorney General shall be as provided by Federal law. Part-13 Provincial Executive 162. Executive Power of Province: (1) The executive power of the Province shall be vested in the Provincial Council of Ministers in accordance with this Constitution and Provincial law. Provided that, if the Provincial Executive cannot be maintained due to the enforcement of Federal governance, the Provincial Head shall exercise the executive power of the Province in accordance with the direction of the Government of Nepal. (2) Subject to this Constitution and other laws, the responsibility for the general direction, control, and conduct of the governance system of the Province shall lie with the Provincial Council of Ministers. (3) The executive functions of the Province shall be carried out in the name of the Provincial Government. (4) Subject to this Constitution, the executive power of the Province shall extend to matters as mentioned in the Lists under Schedule-6, Schedule-7, and Schedule-9. Provided that, concerning matters of concurrent jurisdiction of the Federation and Province, except where clearly provided in this Constitution and Federal law, the Provincial Council of Ministers shall exercise the executive power in coordination with the Government of Nepal. (5) The certification of decisions or orders made in the name of the Provincial Government pursuant to sub-article (3) and related instruments shall be as provided by Provincial law. 163. Provisions relating to Provincial Head: (1) There shall be a Provincial Head in each Province as the representative of the Government of Nepal. (2) The President shall appoint one Provincial Head for each Province. (3) The term of office of the Provincial Head shall be five years, except when the President relieves him of office before the expiry of the term. (4) The same person shall not be the Provincial Head of the same Province for more than once. 164. Qualification for Provincial Head: A person having the following qualifications shall be qualified to become the Provincial Head:- (a) being qualified to become a member of the Federal Parliament, (b) having completed the age of thirty-five years, and (c) not being disqualified by any law. 165.

Circumstances for Vacancy of Office of Provincial Head: (1) The office of the Provincial Head shall become vacant under any of the following circumstances:- (a) if he submits a written resignation to the President, (b) if his term of office expires or if the President relieves him of office before that, (c) if he dies. (2) If the office of the Provincial Head of a Province becomes vacant, the President may assign another Provincial Head of another Province to also handle the work of that Province until the appointment of a Provincial Head. 166. Functions, Duties and Powers of Provincial Head: (1) The Provincial Head shall exercise the powers and perform the duties conferred on him by this Constitution or law. (2) While exercising powers or performing duties under sub-article (1), all other actions performed by the Provincial Head, except the actions which are expressly required by this Constitution or law to be done on the recommendation of any body or officeholder, shall be done on the recommendation and with the concurrence of the Provincial Council of Ministers. Such recommendation and concurrence shall be submitted through the Chief Minister. (3) The certification of decisions or orders made in the name of the Provincial Head pursuant to sub-article (2) and related instruments shall be as provided by Provincial law. 167. Oath of Provincial Head: Before assuming office, the Provincial Head shall take an oath of office and secrecy before the President in accordance with Federal law. 168.

Formation of Provincial Council of Ministers: (1) The Provincial Head shall appoint the leader of the parliamentary party commanding a majority in the Provincial Assembly as the Chief Minister, and the Provincial Council of Ministers shall be formed under his chairpersonship. (2) In case no party has a clear majority in the Provincial Assembly under sub-article (1), the Provincial Head shall appoint as Chief Minister a member of the Provincial Assembly who can command a majority with the support of two or more parties represented in the Provincial Assembly. (3) If the appointment of the Chief Minister under sub-article (2) is not possible within thirty days from the date of the declaration of the final results of the election to the Provincial Assembly, or if the Chief Minister so appointed fails to secure a vote of confidence under sub-article (4), the

Provincial Head shall appoint as Chief Minister the leader of the parliamentary party having the highest number of members in the Provincial Assembly. (4) The Chief Minister appointed under sub-article (2) or (3) must secure a vote of confidence from the Provincial Assembly within thirty days of such appointment. (5) If the Chief Minister appointed under sub-article (3) fails to secure a vote of confidence under sub-article (4), and if any member under sub-article (2) can secure a vote of confidence in the Provincial Assembly, the Provincial Head shall appoint such member as the Chief Minister. (6) The Chief Minister appointed under sub-article (5) must secure a vote of confidence under sub-article (4). (7) If the Chief Minister appointed under sub-article (5) fails to secure a vote of confidence, or if the Chief Minister cannot be appointed, the Provincial Head shall, on the recommendation of the Chief Minister, dissolve the Provincial Assembly and fix a date for the election of another Provincial Assembly to be completed within six months. (8) The process for the appointment of the Chief Minister under this Article must be completed within thirty-five days from the date of the declaration of the final results of the election to the Provincial Assembly held under this Constitution or from the date the office of the Chief Minister becomes vacant. (9) The Provincial Head shall, on the recommendation of the Chief Minister, form the Provincial Council of Ministers from among the members of the Provincial Assembly, in accordance with the principle of inclusiveness, not exceeding twenty percent of the total number of members of the Provincial Assembly, including the Chief Minister.

Explanation: For the purposes of this Part, "Minister" shall mean a Minister, a Minister of State, and an Assistant Minister.

(10) The Chief Minister and Ministers shall be collectively responsible to the Provincial Assembly, and Ministers shall be individually responsible to the Chief Minister and the Provincial Assembly for the work of their ministries. 169. Circumstances for Vacancy of Office of Chief Minister and Minister: (1) The office of the Chief Minister shall become vacant under any of the following circumstances:-

- (a) if he submits a written resignation to the Provincial Head,
- (b) if a motion of confidence is not passed, or if a motion of no-confidence is passed against him under Article 168,
- (c) if he ceases to be a member of the Provincial Assembly,
- (d) if he dies.

(2) The office of a Minister shall become vacant under any of the following circumstances:-

- (a) if he submits a written resignation to the Chief Minister,
- (b) if the Chief Minister relieves him of office,
- (c) if the office of the Chief Minister becomes vacant under clause (a), (b), or (c) of sub-article (1),
- (d) if he dies.

(3) Even if the office of the Chief Minister becomes vacant under sub-article (1), the same Council of Ministers shall conduct business until another Provincial Council of Ministers is formed. Provided that, if the Chief Minister dies, the seniormost Minister shall perform the functions of the Chief Minister until another Chief Minister is appointed. 170. Person not being a Member of Provincial Assembly may become Minister: (1) Notwithstanding anything contained in sub-article (9) of Article 168, the Provincial Head may, on the recommendation of the Chief Minister, appoint any person who is not a member of the Provincial Assembly as a Minister.

(2) The Minister appointed under sub-article (1) shall acquire membership of the Provincial Assembly within six months from the date of taking the oath.

(3) If he fails to acquire membership of the Provincial Assembly within the period under sub-article (2), he shall not be eligible for reappointment to the office of Minister during the term of the then-existing Provincial Assembly.

(4) Notwithstanding anything contained in sub-article (1), a person defeated in the election of the then-existing Provincial Assembly shall not be eligible for appointment to the office of Minister under sub-article (1) during the term of that Provincial Assembly. 171. Remuneration and other Facilities of Chief Minister and Minister: The remuneration and other facilities of the Chief Minister and Ministers shall be as provided by Provincial Act. Until such Act is enacted, they shall be as determined by the Provincial Government. 172.

Oath: The Chief Minister and Ministers shall take an oath of office and secrecy before the Provincial Head, and Ministers of State and Assistant Ministers shall take an oath of office and secrecy before the Chief Minister, in accordance with Provincial law, before assuming their office. 173. Information to be Provided to Provincial Head: The Chief Minister shall inform the Provincial Head about the following matters:- (a) decisions of the Provincial Council of Ministers, (b) Bills to be introduced in the Provincial Assembly, (c) other necessary details requested by the Provincial Head concerning matters mentioned in clauses (a) and (b), and (d) the current situation of the Province. 174. Conduct of Business of Provincial Government: (1) The allocation of business and the transaction of business of the Provincial Government shall be carried out in accordance with the Rules approved by the Provincial Government. (2) The question of whether or not the Rules under sub-article (1) have been complied with shall not be raised in any court. Part-14 Provincial Legislature 175. Provincial Legislature: The Legislature of the Province shall be unicameral, which shall be called the Provincial Assembly. 176.

Formation of Provincial Assembly: (1) Each Provincial Assembly shall have members in the following numbers:- (a) members numbering double the number of members elected to the House of Representatives from the respective Province under the 'first-past-the-post' electoral system, (b) members elected under the proportional electoral system constituting the remaining forty percent, considering the number of members determined under clause (a) as sixty percent. (2) For the election of members under clause (a) of sub-article (1), constituencies shall be determined on the basis of geography and population in accordance with Federal law. (3) Sixty percent members of the Provincial Assembly shall be elected under the 'first-past-the-post' electoral system and forty percent members shall be elected under the proportional electoral system. (4) The election of members of the Provincial Assembly under sub-article (3) shall be by secret ballot based on adult suffrage as provided by law. (5) Every Nepali citizen who has completed the age of eighteen years and resides within the territory of the Province shall have the right to vote in any one constituency as provided by law. (6) When political parties present candidacy for election to the Provincial Assembly under the proportional electoral system, the representation from women, Dalit, indigenous nationalities, Khas Arya, Madhesi, Tharu, Muslim, backward regions, minority communities, etc. on the basis of a closed list shall be made as provided by Federal law. While presenting candidacy, attention shall also be paid to the geographical balance of the respective Province. Explanation: For the purposes of this Part, "Khas Arya" shall mean the Kshetri, Brahmin, Thakuri, Sanyasi (Dashnami) communities. (7) When a political party presents candidacy under sub-article (6), provision shall be made to ensure representation of persons with disabilities as well. (8) If the seat of a member falls vacant when more than six months of the term of the Provincial Assembly remains, such seat shall be filled through the same electoral system by which it was filled. (9) Notwithstanding anything contained elsewhere in this Article, at least one-third of the total number of members elected from each political party represented in the Provincial Assembly must be women.

While so electing, if one-third members of a political party among those elected under clause (a) of sub-article (1) are not women, that political party shall, when electing members under clause (b) of the same sub-article, ensure that at least one-third of the total members elected to the Provincial Assembly from its party are women.

(10) Any person qualified under Article 178 and entitled to vote in the election for member of the Provincial Assembly may, subject to law, become a candidate from any constituency in the Province. Provided that the same person shall not simultaneously be a candidate in more than one constituency.

(11) Other provisions relating to the election to the Provincial Assembly shall be as provided by Federal law. 177. Term of Provincial Assembly: (1) The term of the Provincial Assembly shall be five years, unless dissolved earlier under this Constitution.

(2) Notwithstanding anything contained in sub-article (1), while a declaration of a state of emergency or order is in force in the concerned Province, the term of the Provincial Assembly may be extended by Provincial Act, not exceeding one year.

(3) The term of the Provincial Assembly extended under sub-article (2) shall automatically expire six months after the date of revocation of the declaration of a state of emergency or order in the concerned Province.

178. Qualification for Member of Provincial Assembly: (1) A person having the following qualifications shall be qualified to become a member of the Provincial Assembly:-

- (a) being a citizen of Nepal,
- (b) being a voter of the concerned Province,
- (c) having completed the age of twenty-five years,
- (d) not being convicted of a criminal offence involving moral turpitude,
- (e) not being disqualified by any law, and
- (f) not holding any office of profit. Explanation: For the purposes of this clause, "office of profit" shall mean any position, other than a political position filled by election or nomination, that receives remuneration or financial benefits from a government fund.

(2) Any person holding a political office filled by election, nomination, or appointment, if elected as a member of the Provincial Assembly under this Part, such office shall automatically become vacant from the day he takes the oath of that office. 179. Oath of Member of Provincial Assembly: Members of the Provincial Assembly shall take an oath in accordance with Provincial law before taking part for the first time in a meeting of the Provincial Assembly or any of its committees. 180.

Vacation of Seat of Member of Provincial Assembly: The seat of a member of the Provincial Assembly shall become vacant under any of the following circumstances:- (a) if he submits a written resignation to the Speaker of the Provincial Assembly, (b) if he does not have or ceases to have the qualification under Article 178, (c) if the term of the Provincial Assembly expires or it is dissolved, (d) if he is absent for ten consecutive meetings without notifying the Provincial Assembly, (e) if the party for which he was elected as a candidate informs the Federal law that he has defected from the party, (f) if he dies. 181. Decision on Disqualification of Member of Provincial Assembly: If a question arises as to whether a member of the Provincial Assembly is or has become disqualified under Article 178, the decision shall be made by the Constitutional Bench of the Supreme Court. 182. Speaker and Deputy Speaker of Provincial Assembly: (1) Within fifteen days from the date of the commencement of the first session of the Provincial Assembly, the members of the Provincial Assembly shall elect the Speaker and the Deputy Speaker of the Provincial Assembly from amongst

themselves. (2) While holding the election under sub-article (1), one of the Speaker or Deputy Speaker shall be a woman, and the Speaker and Deputy Speaker shall be representatives of different parties.

Provided that, if there is no representation of more than one party or if, despite representation, no candidacy is submitted, there shall be no bar for a member of the same party to become the Speaker or Deputy Speaker.

(3) If the office of the Speaker or Deputy Speaker falls vacant, the members of the Provincial Assembly shall fill the office of Speaker or Deputy Speaker by election from amongst themselves.

(4) In the absence of the Speaker, the Deputy Speaker shall preside over the Provincial Assembly.

(5) If the election of the Speaker and Deputy Speaker has not taken place or if both offices are vacant, the senior-most member present in terms of age shall preside over the meeting of the Provincial Assembly.

(6) The office of the Speaker or Deputy Speaker shall become vacant under any of the following circumstances:-

(a) if he ceases to be a member of the Provincial Assembly,

Provided that, in the event of the dissolution of the Provincial Assembly, the Speaker and Deputy Speaker holding office at that time shall continue in their offices until the day preceding the date of filing of nomination for the next election to the Provincial Assembly.

(b) if he submits a written resignation,

(c) if a motion that he has not conducted himself appropriately according to the office is passed by a two-thirds majority of the total number of then-existing members of the Provincial Assembly.

(7) The Deputy Speaker shall preside over the meeting of the Provincial Assembly where a motion for inappropriate conduct according to the office is discussed. The Speaker shall be entitled to participate and vote in the discussion on such motion. 183. Summoning and Prorogation of Session of Provincial Assembly:

(1) The Provincial Head shall summon a session of the Provincial Assembly within twenty days from the date of the declaration of the final results of the election to the Provincial Assembly. Thereafter, the Provincial Head shall summon other sessions from time to time in accordance with this Constitution. Provided that the period between the termination of one session and the commencement of another session shall not exceed six months.

(2) The Provincial Head may prorogue a session of the Provincial Assembly.

(3) During the period when the session of the Provincial Assembly is not ongoing or when the meeting is adjourned, if one-fourth of the total number of members of the Provincial Assembly make a written request stating that it is desirable to call a session or meeting, the Provincial Head shall fix a date and time for such session or meeting. The session of the Provincial Assembly shall commence or the meeting shall sit on the date and time so fixed.

184. Address by Provincial Head: (1) The Provincial Head may address a meeting of the Provincial Assembly and may summon the members for that purpose. (2) The Provincial Head shall address a meeting of the Provincial Assembly after the commencement of the first session following the election to the Provincial Assembly and the first session of each year. 185. Quorum of Provincial Assembly: Unless otherwise provided in this Constitution, no question or proposal shall be presented for decision at a meeting of the Provincial Assembly until at least one-fourth of the total number of members are present. 186. Voting in Provincial

Assembly: Any proposal presented for decision in the Provincial Assembly shall be decided by a majority of the members present and voting. The person presiding shall not have the right to vote. Provided that, in the case of a tie, the person presiding shall exercise a casting vote. 187. Privileges of Provincial Assembly: (1) Subject to this Constitution, there shall be complete freedom of speech in the Provincial Assembly, and no member shall be arrested, detained, or prosecuted in any court for any matter expressed or any vote cast in the Provincial Assembly. (2) Subject to this Constitution, the Provincial Assembly shall have full power to conduct its own business and decide its own proceedings, and the Provincial Assembly alone shall have the authority to decide whether its proceedings are regular or not. No question shall be raised in any court regarding this. (3) No comment shall be made casting doubt on the good faith of any proceeding of the Provincial Assembly, and no publication or broadcast that knowingly gives a false or misleading meaning to any speech made by any member shall be made. (4) The provisions of sub-articles (1) and (3) shall also apply to other persons who are entitled to participate in meetings of the Provincial Assembly, other than members of the Provincial Assembly. (5) No person shall be prosecuted in court for the publication of any document, report, vote, or proceeding under the authority of the Provincial Assembly. Explanation: For the purposes of this sub-article and sub-articles (1), (2), (3), and (4), "Provincial Assembly" shall also include a committee meeting of the Provincial Assembly. (6) A member of the Provincial Assembly shall not be arrested during the period from the issuance of the notice summoning a session until the end of the session. Provided that this sub-article shall not be deemed to prevent the arrest of any member under law on a criminal charge.

If any member is so arrested, the arresting officer shall immediately give notice thereof to the person presiding over the Provincial Assembly. (7) The violation of a privilege shall be deemed to be a contempt of the Provincial Assembly, and the Provincial Assembly alone shall have the authority to decide whether or not a privilege has been violated. (8) If any person commits contempt of the Provincial Assembly, the person presiding over such Assembly may, by a decision of the Provincial Assembly, warn, admonish, or imprison such person for a term not exceeding three months or impose a fine not exceeding ten thousand rupees, and such fine shall be recovered as a government due. Provided that, if such person apologizes to the satisfaction of the Provincial Assembly, such Assembly may grant pardon or remit or reduce the punishment already imposed. (9) Other provisions relating to the privileges of the Provincial Assembly shall be as provided by Provincial law. 188. Provision relating to Vote of Confidence and Motion of No-Confidence: (1) The Chief Minister may, at any time, if he deems necessary or appropriate to ascertain whether he has the confidence of the Provincial Assembly, present a proposal for a vote of confidence before the Provincial Assembly. (2) If the party represented by the Chief Minister splits, or if a party participating in the Provincial Government withdraws its support, the Chief Minister must present a proposal for a vote of confidence before the Provincial Assembly within thirty days. (3) If the proposal submitted under sub-articles (1) and (2) is not passed by a majority of the total number of then-existing members in the Provincial Assembly, the Chief Minister shall be relieved of his office. (4) One-fourth of the total number of then-existing members in the Provincial Assembly may submit a motion of no-confidence in writing stating that the Provincial Assembly has no confidence in the Chief Minister.

Provided that such a motion of no-confidence shall not be submitted within the first two years of the appointment of the Chief Minister and within one year of the failure of a previously submitted motion of no-confidence.

(5) When submitting a motion of no-confidence under sub-article (4), the name of the member proposed for the Chief Minister must also be mentioned.

(6) If the motion of no-confidence submitted under sub-article (4) is passed by a majority of the total number of then-existing members in the Provincial Assembly, the Chief Minister shall be relieved of office.

(7) If the motion of no-confidence under sub-article (6) is passed and the office of the Chief Minister becomes vacant, the Provincial Head shall appoint the member of the Provincial Assembly proposed under sub-article (5) as the Chief Minister under Article 168.

189. Minister, Minister of State and Assistant Minister Entitled to Participate in Provincial Assembly Meeting: Ministers, Ministers of State, and Assistant Ministers shall be entitled to attend and take part in the proceedings and discussions of the Provincial Assembly and its committees. Provided that a Minister, Minister of State, or Assistant Minister who is not a member of the Provincial Assembly shall not be entitled to vote in the meeting of the Provincial Assembly or its committees, and a Minister, Minister of State, or Assistant Minister who is a member of the Provincial Assembly shall not be entitled to vote in the meetings of a committee other than the one of which he is a member.

190. Penalty for Sitting or Voting without Oath or Qualification: If any person, who has not taken the oath under Article 179 or who is not a member of the Provincial Assembly, attends or votes as a member in a meeting of the Provincial Assembly or any of its committees, he shall be liable, by order of the person presiding over that meeting, to a fine of five thousand rupees for each day of so attending or voting, and such fine shall be recovered as a government due.

191. Restriction on Discussion: No discussion shall take place in the Provincial Assembly regarding matters that may adversely affect the adjudication of a case pending in any court in Nepal, or regarding the judicial functions performed by a judge in the course of performing his duties.

192. Conduct of Business of Provincial Assembly in Case of Vacant Seat: The Provincial Assembly may conduct its business even if the seat of any member is vacant, and any proceedings already taken shall not become invalid even if it is subsequently discovered that a person who was not entitled to take part in the proceedings of the Provincial Assembly did so.

193.

Provincial Assembly may form Committee: The Provincial Assembly may, in order to systematize its functioning, form committees or special committees as necessary in accordance with the Rules.

194. Method of Conducting Business of Provincial Assembly: The Provincial Assembly shall make Rules to conduct its business, maintain order at meetings, and regulate the formation, functions, proceedings, and other matters related to committees. Until such Rules are made, the Provincial Assembly shall itself regulate its procedure.

195. Secretary and Secretariat of Provincial Assembly: (1) The Provincial Head shall, on the recommendation of the Speaker, appoint the Secretary of the Provincial Assembly. (2) There shall be a secretariat for the conduct and management of the business of the Provincial Assembly. The establishment of such secretariat and other related provisions shall be as provided by Provincial law. (3) The qualifications, functions, duties, powers, and other conditions of service of the Secretary of the Provincial Assembly shall be as provided by Provincial law.

196. Remuneration: The remuneration and facilities of the Speaker, Deputy Speaker, and members of the Provincial Assembly shall be as provided by Provincial law. Until such law is enacted, they shall be as determined by the Provincial Government.

Part-15 Provincial Legislative Procedure

197. Legislative Power of Provincial Assembly: The legislative power of the Provincial Assembly shall extend to matters as mentioned in the Lists under Schedule-6, Schedule-7, and Schedule-9.

198. Method of Introducing Bill in Provincial Assembly: (1) Subject to this Constitution, a Bill may be introduced in the Provincial Assembly. (2) A Money Bill and a Bill relating to peace and security shall be introduced only as a Government Bill. (3) "Money Bill" means a Bill that relates to all or any of the following matters:- (a) the levying, collection, abolition, remission, alteration, or regulation of taxes in the Province, (b) the preservation of the Provincial Consolidated Fund or any other Provincial Government Fund, the deposit of money into such Fund, or the appropriation or expenditure of any money from such Fund, or the reduction, increase, or abolition of money sought to be appropriated or expended, (c) the regulation of the borrowing of money or the

giving of guarantee by the Provincial Government, or the amendment of the law relating to the financial obligations taken or to be taken by the Provincial Government, (d) the custody, investment, or auditing of all types of revenue, money obtained from loan recovery, and grant money received in the Provincial Government Fund, or the auditing of the accounts of the Provincial Government, or (e) matters incidental to those directly connected with clauses (a), (b), (c), or (d).

Provided that a Bill shall not be deemed to be a Money Bill merely because it provides for the levying of fees such as license fees, application fees, renewal fees, or other charges or fees, or for the imposition of fines or imprisonment.

(4) If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker of the Provincial Assembly shall be final. 199. Procedure for Passing Bill: (1) A Bill passed by the Provincial Assembly shall be submitted to the Provincial Head for certification.

(2) If a Bill is pending and the session of the Provincial Assembly ends, proceedings on that Bill may continue in the next session. Provided that if the Provincial Assembly is dissolved or its term expires while a Bill is pending before it, such Bill shall lapse. 200. Withdrawal of Bill: The mover of a Bill may, with the consent of the Provincial Assembly, withdraw the Bill. 201. Certification of Bill: (1) A Bill submitted to the Provincial Head for certification under Article 199 shall be submitted after being certified by the Speaker of the Provincial Assembly. Provided that, in the case of a Money Bill, the Speaker shall certify that it is a Money Bill.

(2) The Provincial Head shall, within fifteen days of the receipt of a Bill submitted for certification under this Article, certify it and give notice thereof to the Provincial Assembly as soon as possible.

(3) If the Provincial Head considers it necessary to reconsider a Bill, other than a Money Bill, submitted for certification, he may return the Bill with a message to the Provincial Assembly within fifteen days of its submission.

(4) If the Provincial Head returns a Bill with a message under sub-article (3), and the Provincial Assembly reconsiders and passes the Bill in its original form or with amendments and resubmits it, the Provincial Head shall certify it within fifteen days of such resubmission.

(5) A Bill shall become an Act after certification by the Provincial Head. 202. Ordinance: (1) If, at any time, except when the session of the Provincial Assembly is ongoing, circumstances exist requiring immediate action, the Provincial Head may, on the recommendation of the Provincial Council of Ministers, promulgate an Ordinance.

(2) An Ordinance promulgated under sub-article (1) shall have the same force and effect as an Act.

Provided that every such Ordinance,-

(a) shall be presented at the meeting of the Provincial Assembly held after its promulgation, and it shall automatically cease to be in force if not accepted by the Provincial Assembly,

(b) may be revoked at any time by the Provincial Head, and

(c) shall automatically cease to be in force sixty days after the commencement of the meeting of the Provincial Assembly if not made ineffective or revoked under clauses (a) or (b). Part-16

Provincial Financial Procedure

203. No Tax or Loan to be Levied or Raised: (1) No tax shall be levied and collected in the Province except by or under the authority of law.

(2) No loan shall be raised and no guarantee shall be given by the Provincial Government except under Federal law. 204. Provincial Consolidated Fund: Except for trust funds, all types of revenue received by the Provincial Government, all loans raised on the security of revenue, all money received from the recovery of any loan given under the authority of a Provincial Act, and grants and loan money received from the Government of Nepal shall be credited to a single Provincial Government Fund, unless otherwise provided by a Provincial Act, which shall be called the Provincial Consolidated Fund. 205. Expenditure from Provincial Consolidated Fund or Provincial Government Fund: No money shall be withdrawn from the Provincial Consolidated Fund or any other Provincial Government Fund except the following amounts:-

(a) money charged on the Provincial Consolidated Fund,
(b) money to be spent under the Appropriation Act,
(c) money to be spent in the form of an advance under law when an Appropriation Bill is pending, or
(d) money to be spent by a Vote on Credit Act containing only a statement of expenditure in special circumstances. Provided that, in the case of the Provincial Emergency Fund, it shall be in accordance with Article 212. 206. Charge on Provincial Consolidated Fund: The expenditure relating to the following matters shall be charged on the Provincial Consolidated Fund, and the approval of the Provincial Assembly shall not be required for such expenditure:-

(a) amounts for the remuneration and facilities of the Speaker and Deputy Speaker of the Provincial Assembly,
(b) amounts for the remuneration and facilities of the Chairperson and Members of the Provincial Public Service Commission,
(c) charges relating to debt obligations of the Provincial Government,
(d) amounts payable under a judgment or order of a court against the Provincial Government, and
(e) amounts determined by Provincial law to be charged on the Provincial Consolidated Fund. 207.

Estimates of Revenue and Expenditure: (1) The Finance Minister of the Province shall, in respect of each financial year, present an annual estimate before the Provincial Assembly, including details of the following matters:- (a) estimates of revenue, (b) amounts required to be charged on the Provincial Consolidated Fund, and (c) amounts required to be spent under a Provincial Appropriation Act. (2) When presenting the annual estimate under sub-article (1), a statement shall also be submitted regarding the amount of expenditure allocated to each ministry in the preceding financial year and whether the target corresponding to the expenditure was achieved or not. 208. Provincial Appropriation Act: The amounts to be spent under a Provincial Appropriation Act shall be specified under heads in an Appropriation Bill. 209. Supplementary Estimates: (1) If any of the following circumstances arise in any financial year, the Finance Minister of the Province may present a supplementary estimate before the Provincial Assembly:- (a) if the amount authorized to be spent for any service under the Provincial Appropriation Act for the current financial year is found insufficient, or if it is necessary to spend on a new service not authorized by the Provincial Appropriation Act for that year, or (b) if the expenditure incurred in the current financial year exceeds the amount authorized under the Provincial Appropriation Act. (2) The amounts included in the supplementary estimate shall be specified under the relevant heads in a Supplementary Appropriation Bill. 210. Vote on Account: (1) Notwithstanding anything contained elsewhere in this Part, while an Appropriation Bill is pending, any part of the estimated expenditure for the financial year may be spent in the form of an advance in accordance with a Provincial Act. (2) A Vote on Account Bill shall not be presented until the estimates of revenue and expenditure under Article 207 are presented, and the amount of the advance shall not exceed one-third of the estimated expenditure for the financial year. (3) The amount spent under a Provincial Vote on

Account Act shall be included in the Appropriation Bill. 211. Vote on Credit: Notwithstanding anything contained elsewhere in this Part, if a situation of crisis arises in the Province due to natural causes or other reasons, making it impractical to present the details required under sub-article (1) of Article 207 or undesirable from the perspective of the security or interest of the Province, the Finance Minister of the Province may present before the Provincial Assembly a Vote on Credit Bill containing only a statement of expenditure. 212.

Provincial Emergency Fund: (1) A fund called the Provincial Emergency Fund may be established by a Provincial Act, and the amount determined from time to time by a Provincial Act shall be deposited in that Fund. (2) The Fund under sub-article (1) shall be under the control of the Provincial Government. The Provincial Government may spend from such Fund for emergency purposes. (3) The amount spent under sub-article (2) shall be reimbursed as soon as possible in accordance with a Provincial Act. 213. Act relating to Financial Procedure: The transfer of amounts appropriated under a Provincial Act from one head to another and other arrangements relating to financial procedure shall be as provided by Provincial Act. Part-17 Local Executive 214. Executive Power of Local Level: (1) The executive power of the local level shall, subject to this Constitution and Federal law, be vested in the Village Executive or the Municipal Executive. (2) The local executive power shall extend to matters as mentioned in the Lists under Schedule-8 and Schedule-9. (3) Subject to this Constitution and other laws, the responsibility for the general direction, control, and conduct of the governance system of the Rural Municipality and Municipality shall be of the Village Executive and Municipal Executive. (4) The executive functions of the Rural Municipality and Municipality shall be carried out in the name of the Village Executive and the Municipal Executive. (5) The certification of decisions or orders made in the name of the Village Executive and the Municipal Executive pursuant to sub-article (4) and related instruments shall be as provided by local law. 215. Provisions relating to Chairperson and Vice-Chairperson of Village Executive: (1) There shall be one Chairperson of the Village Executive in each Rural Municipality. The Village Executive shall be formed under his chairpersonship. (2) The Village Executive under sub-article (1) shall include one Vice-Chairperson, the Ward Chairperson elected from each Ward, and members elected under sub-article (c) Whose name is included in the voter list of the municipality, and (d) Who is not disqualified by any law. (7) The election of the Municipal Assembly and other related arrangements shall be in accordance with the federal law. 224. President and Vice-President of the Village Assembly and Municipal Assembly: The President and Vice-President of the Village Executive, and the Mayor and Deputy Mayor of the Municipal Executive shall, respectively, be the ex-officio President and Vice-President of the Village Assembly and Municipal Assembly and perform functions. 225. Term of Office of the Village Assembly and Municipal Assembly: The term of office of the Village Assembly and Municipal Assembly shall be five years from the date of election.

The election of the next Village Assembly and Municipal Assembly shall be completed within six months of the expiry of such term. 226. Power to make law: (1) The Village Assembly and Municipal Assembly may make necessary laws on matters listed in the Schedules 8 and 9. (2) The procedure for making laws pursuant to sub-section (1) shall be as determined by the provincial law. 227. Other provisions relating to the Village Assembly and Municipal Assembly: The conduct of the Village Assembly and Municipal Assembly, procedure of meeting, formation of committees, circumstances for the vacancy of seats of members, facilities to be received by the members of the Village Assembly and Municipal Assembly, and other provisions relating to employees and offices of the Rural Municipality and Municipality shall be in accordance with the provincial law. Chapter-19 Local Fiscal System 228. No tax or loan to be levied or taken: (1) No tax shall be levied or collected and no loan shall be taken by a local level except in accordance with the law. (2) A local level may, on matters within its jurisdiction, make law and levy tax in a manner that does not adversely affect the

national economic policy, flow of goods and services, capital and labor markets, or neighboring province or local level. 229. Local Consolidated Fund: (1) Every Rural Municipality and Municipality under a local level shall have a Local Consolidated Fund. All revenues received by the Rural Municipality or Municipality, grants received from the Government of Nepal and the Provincial Government, and loans taken by the Rural Municipality or Municipality, and amounts received from other sources shall be deposited in such Fund. (2) The provision relating to expenditures that may be made from the Local Consolidated Fund pursuant to sub-section (1) shall be in accordance with the local law. 230. Estimates of Revenues and Expenditure of Rural Municipality and Municipality: (1) Subject to this Constitution, the Village Executive and the Municipal Executive shall, in accordance with the local law, present the estimates of revenue and expenditure of each financial year to the Village Assembly or Municipal Assembly and get them approved. (2) While presenting the estimates of revenue and expenditure pursuant to sub-section (1), if it is necessary to create a deficit budget, the Village Executive or Municipal Executive shall also propose the source of financing the deficit in accordance with the federal law and the provincial law. Chapter-20 Interrelations between the Federation, Province and Local Level 231.

Legislative interrelation between Federation and Province: (1) A federal law may be made applicable to the whole of Nepal or, as required, to any part of Nepal only. (2) A provincial law may be made applicable to the whole province or, as required, to any part of the province only. (3) If two or more provinces make a request to the Government of Nepal to make law on any matter listed in Schedule 6, the Federal Parliament may make the necessary law. Such law shall be applicable only to the concerned provinces. 232. Relations between Federation, Province and Local Level: (1) The relation between the Federation, Province and Local Level shall be based on the principles of cooperation, coexistence and coordination. (2) The Government of Nepal may, on matters of national importance and on matters requiring coordination among provinces, give necessary directives to the Provincial Council of Ministers in accordance with this Constitution and the federal law, and it shall be the duty of the concerned Provincial Council of Ministers to comply with such directives. (3) If any act seriously affecting the sovereignty, territorial integrity, nationality or independence of Nepal is done in a province, the President may, as required, caution the Provincial Council of Ministers of such province, or suspend or dissolve the Provincial Council of Ministers and the Provincial Assembly for a period not exceeding six months. (4) If a Provincial Council of Ministers and Provincial Assembly are suspended or dissolved pursuant to sub-section (3), such action shall be approved by a majority of the total number of the existing members of the Federal Parliament within thirty-five days. (5) If the action relating to dissolution under sub-section (3) is approved by the Federal Parliament, the election of the Provincial Assembly shall be held in such province within six months. Provided that if it is not approved by the Federal Parliament, such action relating to suspension or dissolution shall automatically become ineffective. (6) If the suspension under sub-section (3) is approved under sub-section (4), federal governance shall remain in such province during the period of such suspension and until the election of the Provincial Assembly under sub-section (5) is held. (7) During the period of federal governance, the Federal Parliament may make law on matters falling within the list under Schedule 6. Such law shall remain in force until it is repealed by another law made by the concerned Provincial Assembly. (8) The Government of Nepal may, itself or through the Provincial Government, give necessary assistance and directives to the Village Executive or Municipal Executive in accordance with this Constitution and the federal law.

It shall be the duty of the Village Executive or Municipal Executive to comply with such directives. 233. Relations between Provinces: (1) One province shall render assistance in the implementation of the legal provisions or judicial and administrative decisions or orders of another province.

(2) One province may, with another province, exchange information, consult, coordinate its actions and legislation and extend mutual assistance on matters of common interest, concern and benefit.

(3) One province shall provide to the residents of another province equal security, treatment and facilities in accordance with the law of its province. 234. Inter-Provincial Council: (1) To settle political disputes arising between the Federation and a Province or between Provinces, there shall be an Inter-Provincial Council as follows: -

(a) Prime Minister ? Chairperson

(b) Minister for Home Affairs of the Government of Nepal ? Member

(c) Minister for Finance of the Government of Nepal ? Member

(d) Chief Minister of the concerned Province ? Member

(2) The meeting of the Inter-Provincial Council shall meet as required.

(3) The Inter-Provincial Council may invite Ministers of the Government of Nepal and Ministers of the concerned Province and experts related to the subject matter of the dispute to its meeting.

(4) The procedure relating to the meeting of the Inter-Provincial Council shall be as determined by the Council itself. 235. Coordination between Federation, Province and Local Level: (1) To maintain coordination between the Federation, Province and Local Level, the Federal Parliament shall make necessary laws.

(2) To maintain coordination between a Province, Rural Municipality or Municipality, and if any political dispute arises, the Provincial Assembly may, in coordination with the concerned Rural Municipality, Municipality and District Coordination Committee, settle such dispute.

(3) The process and procedure for settling disputes under sub-section (2) shall be in accordance with the provincial law. 236. Inter-Provincial Trade: Notwithstanding anything elsewhere written in this Constitution, no obstruction or hindrance of any kind shall be caused to the transport of goods or extension of services from one province or local level to the area of another province or local level, or to the transport of goods or extension of services in the area of any province or local level, nor shall any fee, charge or revenue be levied, nor any discrimination of any kind be made in such transport or extension of services or goods. 237. Not to affect the jurisdiction of the Constitutional Bench of the Supreme Court: Nothing written in this Part shall affect the jurisdiction of the Constitutional Bench of the Supreme Court under Article 137. Part-21

Commission for the Investigation of Abuse of Authority

238.

Commission for the Investigation of Abuse of Authority: (1) There shall be a Commission for the Investigation of Abuse of Authority in Nepal consisting of a Chief Commissioner and other four Commissioners. The Chief Commissioner shall act as the chairperson of the Commission for the Investigation of Abuse of Authority. (2) The President shall appoint the Chief Commissioner and Commissioners on the recommendation of the Constitutional Council. (3) The term of office of the Chief Commissioner and Commissioners shall be six years from the date of appointment. (4) Notwithstanding anything written in sub-section (3), the office of the Chief Commissioner or Commissioner shall become vacant in any of the following circumstances: - (a) If he/she submits a written resignation to the President, (b) If his/her age attains sixty-five years, (c) If an impeachment motion is passed against him/her under Article 101, (d) If the President, on the recommendation of the Constitutional Council, removes him/her from office on the ground that he/she is unable to perform duties due to physical or mental illness, (e) If his/her death occurs. (5) The Chief

Commissioner and Commissioner appointed under sub-section (2) shall not be re-appointed. Provided that a Commissioner may be appointed to the post of Chief Commissioner, and if such Commissioner is appointed to the post of Chief Commissioner, the period of service as Commissioner shall also be added for the calculation of his/her term of office. (6) A person having the following qualification shall be eligible for appointment to the post of Chief Commissioner or Commissioner of the Commission for the Investigation of Abuse of Authority: - (a) Having obtained a Bachelor's degree from a recognized university, (b) Not being a member of any political party at the time of appointment, (c) Having worked for at least twenty years in the field of accounts, revenue, engineering, law, development or research and gained experience and reputation, (d) Having attained the age of forty-five years, and (e) Being of high moral character. (7) The remuneration and terms of service of the Chief Commissioner and Commissioners shall be in accordance with the federal law. So long as the Chief Commissioner and Commissioners hold office, the remuneration and terms of service shall not be changed to their disadvantage.

239. Functions, Duties and Powers of the Commission for the Investigation of Abuse of Authority: (1) The Commission for the Investigation of Abuse of Authority may, in accordance with the law, investigate or cause investigation into the abuse of authority by committing corruption by any person holding a public office. Provided that this sub-section shall not apply in case of officials for whom separate provisions are made in this Constitution and officials for whom separate special provisions are made by other laws.

(2) In the case of a person removed from office by passing an impeachment motion under Article 101, a judge removed from office by the Judicial Council, and a person subject to action under the Army Act, investigation may be conducted or caused to be conducted in accordance with the federal law after he/she is removed from office.

(3) If, from the investigation conducted under sub-section (1) or (2), it appears that any person holding a public office has committed any act deemed to be corruption under the law, the Commission for the Investigation of Abuse of Authority may file or cause to file a case against such person and other persons involved in that crime in the court having jurisdiction under the law.

(4) If, from the investigation conducted under sub-section (1) or (2), the work and actions of a person holding a public office appear to be of a nature falling within the jurisdiction of another official or body, the Commission for the Investigation of Abuse of Authority may forward the matter in writing to the concerned official or body for necessary action.

(5) The Commission for the Investigation of Abuse of Authority may delegate, subject to the specified conditions, any of its functions, duties and powers relating to conducting investigation or prosecuting cases to the Chief Commissioner, any Commissioner or an officer employee of the Government of Nepal for exercise and compliance.

(6) Other functions, duties, powers and procedure of the Commission for the Investigation of Abuse of Authority shall be in accordance with the federal law. Chapter-22

Auditor General

240.

Auditor General: (1) There shall be an Auditor General of Nepal. (2) The President shall appoint the Auditor General on the recommendation of the Constitutional Council. (3) The term of office of the Auditor General shall be six years from the date of appointment. (4) Notwithstanding anything written in sub-section (3), the

office of the Auditor General shall become vacant in any of the following circumstances: - (a) If he/she submits a written resignation to the President, (b) If his/her age attains sixty-five years, (c) If an impeachment motion is passed against him/her under Article 101, (d) If the President, on the recommendation of the Constitutional Council, removes him/her from office on the ground that he/she is unable to perform duties due to physical or mental illness, (e) If his/her death occurs. (5) The Auditor General appointed under sub-section (2) shall not be re-appointed. (6) A person having the following qualification shall be eligible for appointment to the post of Auditor General: - (a) Having obtained a Bachelor's degree in Management, Commerce or Accountancy from a recognized university or having passed the Chartered Accountancy examination, and having worked in the post of special class of the Government of Nepal or having gained at least twenty years of experience in audit-related work, (b) Not being a member of any political party at the time of appointment, (c) Having attained the age of forty-five years, and (d) Being of high moral character. (7) The remuneration and terms of service of the Auditor General shall be in accordance with the federal law. So long as the Auditor General holds office, the remuneration and terms of service shall not be changed to his/her disadvantage. Provided that this provision shall not apply in case of a declaration of a state of emergency due to extreme economic disarray. (8) A person who has once served as the Auditor General shall not be eligible for appointment in any other government service. Provided that nothing written in this sub-section shall be deemed to prevent such person from being appointed and working in any political office or any office for conducting research, inspection or investigation on any subject or for presenting opinions, views or recommendations after studying or exploring any subject. 241.

Functions, Duties and Powers of the Auditor General: (1) The accounts of all federal and provincial government offices, including the Office of the President and Vice-President, Supreme Court, Federal Parliament, Provincial Assembly, Provincial Government, Local Level, Constitutional Bodies or their offices, courts, the Office of the Attorney General, and the Nepal Army, Nepal Police or Armed Police Force, Nepal, shall be audited by the Auditor General considering regularity, economy, efficiency, effectiveness and propriety thereof in accordance with the law. (2) When appointing an auditor for the audit of an organization in which the Government of Nepal or Provincial Government holds more than fifty percent of shares or assets, consultation shall be made with the Auditor General. The Auditor General may give necessary directives regarding the principles to be adopted while auditing such organization. (3) The Auditor General shall have the right to inspect accounts-related documents at any time for the purposes of the work under sub-section (1). It shall be the duty of the concerned office chief to provide any document and information requested by the Auditor General or his/her employees. (4) The accounts to be audited under sub-section (1) shall be maintained in the format prescribed by the Auditor General in accordance with the federal law. (5) Apart from the accounts of offices mentioned in sub-section (1), provision may be made under the federal law for the audit of accounts of any other office or institution by the Auditor General. Chapter-23 Public Service Commission 242. Public Service Commission: (1) There shall be a Public Service Commission in Nepal consisting of a Chairperson and other four members. (2) The President shall appoint the Chairperson and members of the Public Service Commission on the recommendation of the Constitutional Council. (3) At least fifty percent of the members of the Public Service Commission shall be appointed from among persons who have served in any government service for twenty years or more, and the remaining members from among persons who have gained reputation by doing research, investigation, teaching or any other significant work in the fields of science, technology, arts, literature, law, public administration, sociology or other fields of national life. (4) The term of office of the Chairperson and members of the Public Service Commission shall be six years from the date of appointment. (5) The Chairperson and member appointed under sub-section (2) shall not be re-appointed.

Provided that a member may be appointed to the post of Chairperson, and if such member is appointed to the post of Chairperson, the period of service as member shall also be added for the calculation of his/her term of office.

(6) Notwithstanding anything written in sub-section (4), the office of the Chairperson or member of the Public Service Commission shall become vacant in any of the following circumstances: -

- (a) If he/she submits a written resignation to the President,
- (b) If his/her age attains sixty-five years,
- (c) If an impeachment motion is passed against him/her under Article 101,
- (d) If the President, on the recommendation of the Constitutional Council, removes him/her from office on the ground that he/she is unable to perform duties due to physical or mental illness,
- (e) If his/her death occurs.

(7) A person having the following qualification shall be eligible for appointment to the post of Chairperson or member of the Public Service Commission: -

- (a) Having obtained a Master's degree from a recognized university,
- (b) Not being a member of any political party at the time of appointment,
- (c) Having attained the age of forty-five years, and
- (d) Being of high moral character.

(8) The remuneration and terms of service of the Chairperson and members of the Public Service Commission shall be in accordance with the federal law. So long as the Chairperson and members of the Public Service Commission hold office, the remuneration and terms of service shall not be changed to their disadvantage. Provided that this provision shall not apply in case of a declaration of a state of emergency due to extreme economic disarray.

(9) A person who has once served as the Chairperson or member of the Public Service Commission shall not be eligible for appointment in any other government service. Provided that nothing written in this sub-section shall be deemed to prevent such person from being appointed and working in any political office or any office for conducting research, inspection or investigation on any subject or for presenting opinions, views or recommendations after studying or exploring any subject. 243. Functions, Duties and Powers of the Public Service Commission: (1) It shall be the duty of the Public Service Commission to conduct examinations for the selection of suitable candidates for appointment to the civil service posts.

Explanation: For the purposes of this Article, "organization" means a corporation, company, bank, committee or other organized institution of similar nature, in which the Government of Nepal owns fifty percent or more shares or assets or has control, except universities and the Teachers Service Commission, established under the federal law or formed by the Government of Nepal.

(3) Consultation with the Public Service Commission shall be made on the general principles to be adopted in awarding promotions to posts in the Nepal Army, Nepal Police, Armed Police Force, Nepal and other federal government services.

(4) Consultation with the Public Service Commission shall be made on the law relating to terms of service of employees of any organization and the general principles to be adopted in awarding promotions and taking departmental action in such service posts.

(5) No permanent appointment shall be made to a pensionable post from the Government of Nepal without

consultation with the Public Service Commission.

(6) Consultation with the Public Service Commission shall be made on the following matters: -

- (a) On the law relating to the terms of federal civil service,
- (b) On the principles to be adopted in making appointments, promotions and departmental actions in the federal civil service or posts,
- (c) On the suitability of a candidate for appointment to a federal civil service post for a period exceeding six months,
- (d) On the suitability of a candidate for transfer or promotion from one type of federal civil service post to another type of federal civil service post, or from other government service to the federal civil service, or for service conversion or transfer from a provincial civil service post to a federal civil service post, or from a federal civil service post to a provincial civil service post,
- (e) On the permanent transfer or promotion of an employee serving in a post not requiring consultation with the Public Service Commission to a post requiring consultation with the Public Service Commission, and
- (f) On the departmental penalty to be imposed on an employee of the federal civil service.

(7) Notwithstanding anything written in sub-section (6), matters falling within the jurisdiction of the Judicial Service Commission under Article 144 shall be as per the same.

(8) The Public Service Commission may delegate, subject to the specified conditions, any of its functions, duties and powers to the Chairperson or any member or an employee of the Government of Nepal for exercise and compliance.

(9) Other functions, duties and powers of the Public Service Commission shall be in accordance with the federal law. 244.

Provision relating to Provincial Public Service Commission: (1) There shall be a Provincial Public Service Commission in each province. (2) The formation, functions, duties and powers of the Provincial Public Service Commission shall be in accordance with the provincial law. (3) For the purposes of sub-section (2), the Federal Parliament shall, by law, determine the basis and standards. Part-24 Election Commission 245. Election Commission: (1) There shall be an Election Commission in Nepal consisting of a Chief Election Commissioner and other four Election Commissioners. The Chief Election Commissioner shall act as the chairperson of the Election Commission. (2) The President shall appoint the Chief Election Commissioner and Election Commissioners on the recommendation of the Constitutional Council. (3) The term of office of the Chief Election Commissioner and Election Commissioners shall be six years from the date of appointment. (4) Notwithstanding anything written in sub-section (3), the office of the Chief Election Commissioner or Election Commissioner shall become vacant in any of the following circumstances: - (a) If he/she submits a written resignation to the President, (b) If his/her age attains sixty-five years, (c) If an impeachment motion is passed against him/her under Article 101, (d) If the President, on the recommendation of the Constitutional Council, removes him/her from office on the ground that he/she is unable to perform duties due to physical or mental illness, (e) If his/her death occurs. (5) The Chief Election Commissioner and Election Commissioner appointed under sub-section (2) shall not be re-appointed. Provided that an Election Commissioner may be appointed to the post of Chief Election Commissioner, and if such Election Commissioner is appointed to the post of Chief Election Commissioner, the period of service as Election Commissioner shall also be added for the calculation of his/her term of office. (6) A person having the following qualification shall be eligible for appointment to the post of Chief Election Commissioner or Election Commissioner: - (a) Having obtained a Bachelor's degree from a recognized university, (b) Not being

a member of any political party at the time of appointment, (c) Having attained the age of forty-five years, and (d) Being of high moral character. (7) The remuneration and terms of service of the Chief Election Commissioner and Election Commissioners shall be in accordance with the federal law. So long as the Chief Election Commissioner and Election Commissioners hold office, the remuneration and terms of service shall not be changed to their disadvantage.

Provided that this provision shall not apply in case of a declaration of a state of emergency due to extreme economic disarray. (8) A person who has once served as the Chief Election Commissioner or Election Commissioner of the Election Commission shall not be eligible for appointment in any other government service. Provided that nothing written in this sub-section shall be deemed to prevent such person from being appointed and working in any political office or any office for conducting research, inspection or investigation on any subject or for presenting opinions, views or recommendations after studying or exploring any subject.

246. Functions, Duties and Powers of the Election Commission: (1) The Election Commission shall, subject to this Constitution and the federal law, conduct, supervise, direct and control the election of the President, Vice-President, members of the Federal Parliament, members of the Provincial Assembly and members of the Local Level. The function of preparing the voter list for the purposes of election shall be performed by the Election Commission. (2) The Election Commission shall cause a referendum to be held on matters of national importance in accordance with this Constitution and the federal law. (3) If, after the nomination of candidacy for the President, Vice-President, members of the Federal Parliament, members of the Provincial Assembly or members of the Local Level has been filed, but before the declaration of the election result, any question arises regarding the qualification of any candidate, the decision of the Election Commission on such question shall be final. (4) The Election Commission may delegate, subject to the specified conditions, any of its functions, duties and powers to the Chief Election Commissioner, any Election Commissioner or a government employee for exercise and compliance. (5) Other functions, duties, powers and procedure of the Election Commission shall be in accordance with the federal law. 247. To provide necessary assistance: The Government of Nepal, Provincial Government and Local Government shall provide the employees and other assistance necessary for the Election Commission to complete its work under this Constitution. Part-25 National Human Rights Commission 248.

Provided that a member may be appointed to the post of Chairperson, and if such member is appointed to the post of Chairperson, the period of service as member shall also be added for the calculation of his/her term of office.

(5) Notwithstanding anything written in sub-section (3), the office of the Chairperson or member of the National Human Rights Commission shall become vacant in any of the following circumstances: -

- (a) If he/she submits a written resignation to the President,
- (b) If an impeachment motion is passed against him/her under Article 101,
- (c) If the President, on the recommendation of the Constitutional Council, removes him/her from office on the ground that he/she is unable to perform duties due to physical or mental illness,
- (d) If his/her death occurs.

(6) A person having the following qualification shall be eligible for appointment to the post of Chairperson or member of the National Human Rights Commission: -

- (a) For the Chairperson, a person who has made a special contribution to the field of protection and promotion of human rights and is a retired person from the post of Chief Justice or Justice of the Supreme Court, or a person who has been active for at least twenty years in various fields of national life making a

special contribution and has gained reputation,

(b) For a member, a person who has been working in the field of protection and promotion of human rights, rights and interests of children, or a person who has been active for at least twenty years in various fields of national life making a special contribution and has gained reputation,

(c) Having obtained a Bachelor's degree from a recognized university,

(d) Having attained the age of forty-five years,

(e) Not being a member of any political party at the time of appointment,

(f) Being of high moral character.

(7) The remuneration and terms of service of the Chairperson and members of the National Human Rights Commission shall be in accordance with the federal law. So long as the Chairperson and members of the National Human Rights Commission hold office, the remuneration and terms of service shall not be changed to their disadvantage. Provided that this provision shall not apply in case of a declaration of a state of emergency due to extreme economic disarray.

(8) A person who has once served as the Chairperson or member of the National Human Rights Commission shall not be eligible for appointment in any other government service.

Provided that nothing written in this sub-section shall be deemed to prevent such person from being appointed and working in any political office or any office for conducting research, inspection or investigation on any subject or for presenting opinions, views or recommendations after studying or exploring any subject.

249. Functions, Duties and Powers of the National Human Rights Commission: (1) It shall be the duty of the National Human Rights Commission to ensure the respect, protection and promotion of human rights and its effective implementation.

(2) To fulfill the duty under sub-section (1), the National Human Rights Commission shall perform the following functions: -

(a) Investigate and inquire into the petition or complaint submitted or forwarded to the Commission by the victim himself/herself or by someone on his/her behalf, or any matter received by the Commission from any source or come to its knowledge, regarding violation or abetment of human rights of any person or group, and recommend action against the offender,

(b) If an official having the responsibility or duty to prevent human rights violations fails to fulfill his/her responsibility or perform his/her duty, or shows indifference in fulfilling the responsibility or performing the duty, recommend departmental action against such official to the concerned authority,

(c) If it is necessary to file a case against the person or institution violating human rights, recommend filing a case in the court in accordance with the law,

(d) Coordinate and cooperate with civil society for promoting awareness of human rights,

(e) Recommend to the concerned body, stating the reasons and grounds, for departmental action and punishment against the violator of human rights,

(f) Periodically review the laws relating to human rights and recommend to the Government of Nepal for necessary improvements and amendments,

(g) If Nepal should become a party to an international treaty or agreement relating to human rights, recommend to the Government of Nepal with reasons, and monitor whether treaties or agreements Nepal has already become a party to have been implemented or not, and if found not implemented, recommend the Government of Nepal to implement them,

(h) Publicize, in accordance with the law, the name of the official, person or body who does not comply with

or implement the recommendation or directive made by the National Human Rights Commission regarding human rights violations, and maintain a record as a human rights violator.

(3) While performing its functions or duties, the National Human Rights Commission may exercise the following powers: -

- (a) Summon any person before the Commission and take information or statement, or make him/her depose, examine evidence, require the production of exhibits, exercising the same powers as a court,
- (b) If the Commission receives information from any source that a serious violation of human rights is about to occur or has occurred, enter, without notice, any person or his/her residence or office, conduct search, and seize documents, evidence or exhibits related to the human rights violation during such search,
- (c) If it appears necessary to take immediate action upon knowledge that a person's human rights are being violated, enter a government office or other place without notice and carry out rescue,
- (d) Order compensation, in accordance with the law, to the victim of human rights violation.

(4) The National Human Rights Commission may delegate, subject to the specified conditions, any of its functions, duties and powers to the Chairperson, any member or an employee of the Government of Nepal for exercise and compliance.

(5) Other functions, duties, powers and procedure of the National Human Rights Commission shall be in accordance with the federal law.

Part-26

National Natural Resources and Fiscal Commission

250. National Natural Resources and Fiscal Commission: (1) There shall be a National Natural Resources and Fiscal Commission in Nepal consisting of a maximum of five members including the Chairperson.

(2) The President shall appoint the Chairperson and members of the National Natural Resources and Fiscal Commission on the recommendation of the Constitutional Council.

(3) The term of office of the Chairperson and members of the National Natural Resources and Fiscal Commission shall be six years from the date of appointment.

(4) Notwithstanding anything written in sub-section (3), the office of the Chairperson or member of the National Natural Resources and Fiscal Commission shall become vacant in any of the following circumstances: -

- (a) If he/she submits a written resignation to the President,
- (b) If his/her age attains sixty-five years,
- (c) If an impeachment motion is passed against him/her under Article 101,
- (d) If the President, on the recommendation of the Constitutional Council, removes him/her from office on the ground that he/she is unable to perform duties due to physical or mental illness,
- (e) If his/her death occurs.

(5) The Chairperson and member appointed under sub-section (2) shall not be re-appointed. Provided that a member may be appointed to the post of Chairperson, and if such member is appointed to the post of Chairperson, the period of service as member shall also be added for the calculation of his/her term of office.

(6) A person having the following qualification shall be eligible for appointment to the post of Chairperson or

member of the National Natural Resources and Fiscal Commission: -

- (a) Having obtained a Bachelor's degree in a related subject from a recognized university and having been active for at least twenty years in the field of natural resource or fiscal management, economics, law, management, and having acquired expertise,
- (b) Not being a member of any political party at the time of appointment,
- (c) Having attained the age of forty-five years, and
- (d) Being of high moral character.

(7) The remuneration and terms of service of the Chairperson and members of the National Natural Resources and Fiscal Commission shall be in accordance with the federal law and, so long as they hold office, the remuneration and terms of service shall not be changed to their disadvantage. Provided that this provision shall not apply in case of a declaration of a state of emergency due to extreme economic disarray.

(8) A person who has once served as the Chairperson or member of the National Natural Resources and Fiscal Commission shall not be eligible for appointment in any other government service.

Provided that nothing written in this sub-section shall be deemed to prevent such person from being appointed and working in any political office or any office for conducting research, inspection or investigation on any subject or for presenting opinions, views or recommendations after studying or exploring any subject.

251. Functions, Duties and Powers of the National Natural Resources and Fiscal Commission: (1) The functions, duties and powers of the National Natural Resources and Fiscal Commission shall be as follows: -

- (a) Determine the detailed basis and modality for the distribution of revenue from the Federal Consolidated Fund to the Federation, Province and Local Government in accordance with the Constitution and law,
- (b) Recommend on equalization grants to be provided to the Provincial and Local Governments from the Federal Consolidated Fund,
- (c) Study and research on conditional grants to be provided to the Provincial and Local Governments according to national policies and programs, standards, status of infrastructure, and prepare the basis,
- (d) Determine the detailed basis and modality for the distribution of revenue from the Provincial Consolidated Fund to the Province and Local Government,
- (e) Recommend measures to fulfill the expenditure responsibilities of the Federation, Province and Local Government and to improve revenue collection,
- (f) Analyze macroeconomic indicators and recommend the limit of internal debt that the Federation, Province and Local Government may incur,
- (g) Review the basis of revenue distribution between the Federation and Provincial Government and recommend modifications,
- (h) Prepare and recommend the basis for determining the share of investment and return of the Government of Nepal, Provincial Government and Local Level while mobilizing natural resources,
- (i) Study and research on potential disputes that may arise between the Federation and Province, between Provinces, between Province and Local Level, and between Local Levels regarding the distribution of natural resources, and suggest working in a coordinative manner to resolve them.

(2) While distributing natural resources, the National Natural Resources and Fiscal Commission shall conduct necessary study and research on the environmental impact assessment related thereto and recommend to the Government of Nepal.

(3) Other functions, duties and powers of the National Natural Resources and Fiscal Commission, detailed

basis to be adopted while mobilizing natural resources or distributing revenue, terms of service of the officials of the Commission, and other arrangements shall be in accordance with the federal law. Part-27

Other Commissions

252.

National Women Commission: (1) There shall be a National Women Commission in Nepal consisting of a Chairperson and other four members. (2) The President shall appoint the Chairperson and members of the National Women Commission on the recommendation of the Constitutional Council. (3) The term of office of the Chairperson and members of the National Women Commission shall be six years (?) Formulating national policies and programs concerning Dalit interests for the upliftment and development of Dalits by ending caste-based discrimination, untouchability, oppression and differentiation, and submitting them to the Government of Nepal for implementation, (?) Monitoring whether the laws relating to Dalit interests, including special provisions for the upliftment and welfare of the Dalit community, are effectively complied with or not, and if not complied with or implemented, providing suggestions to the Government of Nepal for their compliance or implementation, (?) Providing suggestions to the Government of Nepal regarding the preparation of reports that Nepal is required to submit in accordance with the provisions of international treaties or agreements to which Nepal is a party, relating to the rights of the Dalit community, (?) Reviewing, monitoring and evaluating existing policies and programs to integrate the Dalit community into the mainstream of national development and ensure proportional participation in all organs of the state, and recommending to the Government of Nepal for their effective implementation, (?) Recommending to the concerned body to file a case in the court in accordance with the law, if it appears necessary to file a case against any person or institution regarding matters of caste-based discrimination or untouchability or social malpractices, or denial or deprivation of the exercise of the rights of Dalits. (2) The National Dalit Commission may delegate any of its powers, duties and functions to the Chairperson, any member or any employee of the Government of Nepal, subject to the conditions specified, to be exercised and performed. (3) Other functions, duties, powers and other related provisions of the National Dalit Commission shall be as determined by federal law. 257. Power to establish offices in Provinces: The National Dalit Commission may, as required, establish its offices in the provinces. 258.

National Inclusion Commission: (1) There shall be a National Inclusion Commission in Nepal, consisting of a Chairperson and up to four other members. (2) The President shall appoint the Chairperson and members of the National Inclusion Commission on the recommendation of the Constitutional Council. (3) The term of office of the Chairperson and members of the National Inclusion Commission shall be six years from the date of appointment. (4) Notwithstanding anything contained in sub-section (3), the office of the Chairperson or member of the National Inclusion Commission shall be deemed vacant in any of the following circumstances: (a) If he/she submits a written resignation to the President, (b) If he/she attains the age of sixty-five years, (c) If a motion of impeachment is passed against him/her pursuant to Article 101, (d) If the President removes him/her on the recommendation of the Constitutional Council on the ground that he/she is unable to perform his/her duties due to physical or mental illness, (e) If he/she dies. (5) The Chairperson and members appointed pursuant to sub-section (2) shall not be eligible for reappointment. Provided that a member may be appointed to the office of Chairperson, and if such member is appointed as Chairperson, the period served as a member shall also be added in calculating his/her term of office. (6) A person having the following qualifications shall be qualified for appointment to the office of Chairperson or member of the National Inclusion Commission: (a) Having made significant contribution in the field of social inclusion, rights and interests or development of persons with disabilities, minority and marginalized communities and backward

regions and classes, or human rights for at least ten years, (b) In the case of Chairperson, having obtained a bachelor's degree from a recognized university, (c) Having completed the age of forty-five years, (d) Not being a member of any political party at the time of appointment, and (e) Having high moral character. (7) The remuneration and terms of service of the Chairperson and members of the National Inclusion Commission shall be as determined by federal law, and such remuneration and terms of service shall not be varied to their disadvantage during their tenure. Provided that this provision shall not apply in circumstances where a state of emergency is declared due to extreme economic breakdown. (8) A person who has once held the office of Chairperson or member of the National Inclusion Commission shall not be eligible for appointment in any other government service.

Provided that nothing in this sub-section shall be deemed to prevent such person from being appointed and working in any political office or any office for conducting research, inquiry or investigation into any matter or for studying or exploring any subject and submitting opinions, views or recommendations. 259. Functions, duties and powers of the National Inclusion Commission: (1) The functions, duties and powers of the National Inclusion Commission shall be as follows: (a) To conduct studies and research for the protection of the rights and interests of communities including Khas Arya, backward classes, persons with disabilities, senior citizens, laborers, farmers, minorities and marginalized communities, and backward classes and regions including Karnali and economically disadvantaged classes, (b) To study the implementation status of the policies and laws adopted by the Government of Nepal for the inclusion of the communities, classes and regions mentioned in clause (a), and provide suggestions to the Government of Nepal for improvement, (c) To study whether the communities, classes and regions mentioned in clause (a) have appropriate representation in state mechanisms and provide suggestions to the Government of Nepal for reviewing the special arrangements made for the representation of such communities, classes and regions, (d) To study whether the protection, empowerment and development of the communities, classes and regions mentioned in clause (a) are satisfactory, and recommend to the Government of Nepal regarding policies to be adopted in the future, (e) To provide suggestions to the Government of Nepal regarding policies and programs to be adopted for the development and prosperity of Karnali and backward regions, (f) To recommend timely amendments to laws relating to minorities and marginalized communities, (g) To monitor the implementation status of rights guaranteed to minorities and marginalized communities and make necessary review based on periodic national census and human development index reports and recommend amendments. (2) The National Inclusion Commission may delegate any of its functions, duties and powers to the Chairperson, any member or any employee of the Government of Nepal, subject to the conditions specified, to be exercised and performed. (3) Other functions, duties, powers and other related provisions of the National Inclusion Commission shall be as determined by federal law. 260. Power to establish offices in Provinces: The National Inclusion Commission may, as required, establish its offices in the provinces. 261.

Indigenous Nationalities Commission: (1) There shall be an Indigenous Nationalities Commission in Nepal, consisting of a Chairperson and up to four other members. (2) The President shall appoint the Chairperson and members of the Indigenous Nationalities Commission on the recommendation of the Constitutional Council. (3) The term of office of the Chairperson and members of the Indigenous Nationalities Commission shall be six years from the date of appointment. (4) Other provisions relating to the qualifications, circumstances of vacancy, remuneration and terms of service of the Chairperson and members of the Indigenous Nationalities Commission and the functions, duties and powers of such Commission shall be as determined by federal law. 262. Madhesi Commission: (1) There shall be a Madhesi Commission in Nepal, consisting of a Chairperson and up to four other members. (2) The President shall appoint the Chairperson and members of the Madhesi Commission on the recommendation of the Constitutional Council. (3) The term

of office of the Chairperson and members of the Madhesi Commission shall be six years from the date of appointment. (4) Other provisions relating to the qualifications, circumstances of vacancy, remuneration and terms of service of the Chairperson and members of the Madhesi Commission and the functions, duties and powers of such Commission shall be as determined by federal law. 263. Tharu Commission: (1) There shall be a Tharu Commission in Nepal, consisting of a Chairperson and up to four other members. (2) The President shall appoint the Chairperson and members of the Tharu Commission on the recommendation of the Constitutional Council. (3) The term of office of the Chairperson and members of the Tharu Commission shall be six years from the date of appointment. (4) Other provisions relating to the qualifications, circumstances of vacancy, remuneration and terms of service of the Chairperson and members of the Tharu Commission and the functions, duties and powers of such Commission shall be as determined by federal law. 264. Muslim Commission: (1) There shall be a Muslim Commission in Nepal, consisting of a Chairperson and up to four other members. (2) The President shall appoint the Chairperson and members of the Muslim Commission on the recommendation of the Constitutional Council. (3) The term of office of the Chairperson and members of the Muslim Commission shall be six years from the date of appointment. (4) Other provisions relating to the qualifications, circumstances of vacancy, remuneration and terms of service of the Chairperson and members of the Muslim Commission and the functions, duties and powers of such Commission shall be as determined by federal law. 265.

Review of Commissions: The Federal Parliament shall review the Commissions formed pursuant to this Part after ten years from the date of commencement of this Constitution. Part-28 Provisions relating to National Security 266. National Security Council: (1) There shall be a National Security Council consisting of the following Chairperson and members to formulate policies relating to the overall national interest, security and defense of Nepal and to recommend to the Government of Nepal, the Council of Ministers for the mobilization or control of the Nepalese Army: (a) Prime Minister ? Chairperson (b) Minister of Defence of the Government of Nepal ? Member (c) Minister of Home Affairs of the Government of Nepal ? Member (d) Minister of Foreign Affairs of the Government of Nepal ? Member (e) Minister of Finance of the Government of Nepal ? Member (f) Chief Secretary of the Government of Nepal ? Member (g) Chief of Army Staff, Nepalese Army ? Member (2) The Secretary of the Ministry of Defence shall act as the member-secretary of the National Security Council. (3) The National Security Council shall submit its annual report to the President, and the President shall cause such report to be submitted to the Federal Parliament through the Prime Minister. (4) Other provisions relating to the National Security Council shall be as determined by federal law. 267. Provisions relating to the Nepalese Army: (1) There shall be an organization of the Nepalese Army, which is committed to this Constitution, for the protection of the independence, sovereignty, territorial integrity, autonomy and national unity of Nepal. (2) The President shall be the Supreme Commander of the Nepalese Army. (3) Entry of women, Dalit, indigenous, indigenous nationalities, Khas Arya, Madhesi, Tharu, Muslim, backward classes and citizens of backward regions into the Nepalese Army shall be ensured on the basis of the principles of equality and inclusion, in accordance with federal law. (4) The Government of Nepal may also mobilize the Nepalese Army for development works, disaster management and other tasks, in accordance with federal law. (5) The President shall, on the recommendation of the Council of Ministers, appoint and remove the Chief of Army Staff. (6) If a serious crisis arises due to war, external aggression, armed rebellion or extreme economic breakdown concerning the sovereignty, territorial integrity or security of any part of Nepal, the Government of Nepal, on the recommendation of the National Security Council, shall, by a decision of the Council of Ministers, have the President declare the mobilization of the Nepalese Army.

Such declaration of mobilization of the Nepalese Army shall be approved by the House of Representatives within one month from the date of declaration.

(7) Other provisions relating to the Nepalese Army shall be as determined by law. 268. Provisions relating to Nepal Police, Armed Police Force, Nepal and National Investigation Organization: (1) There shall be Nepal Police, Armed Police Force, Nepal and the National Investigation Department in the Federation.

(2) There shall be a Provincial Police Organization in each Province.

(3) Provisions relating to the operation, supervision and coordination of the functions performed by Nepal Police and Provincial Police shall be as determined by federal law.

(4) Other provisions relating to Nepal Police, Armed Police Force, Nepal and the National Investigation Department shall be as determined by federal law. Part-29

Provisions relating to Political Parties

269. Formation, registration and operation of political parties: (1) Persons committed to a common political ideology, philosophy and program may, subject to the law made under clause (g) of sub-section (2) of Article 17, form and operate political parties, and propagate and publicize them or have them propagated or do other necessary work for that purpose to gain the support and cooperation of the general public for the ideology, philosophy and program of the party.

(2) Political parties formed pursuant to sub-section (1) shall, after fulfilling the procedures as per law, register with the Election Commission.

(3) For the purpose of registering a party pursuant to sub-section (2), when submitting an application, besides the constitution and manifesto of the concerned political party, other documents as required by federal law shall also be submitted.

(4) When applying for registration of a party pursuant to sub-section (2), the political party must fulfill the following conditions:

(a) The constitution and rules of the political party must be democratic,

(b) The constitution of the political party must provide that elections of office bearers at the federal and provincial levels of that party shall be held at least once every five years. Provided that if due to special circumstances, elections of office bearers cannot be completed within five years, there shall be no bar to making provision in the constitution of the political party so that such election can be held within six months.

(c) Inclusive representation must be provided for in the executive committees at various levels of the party so as to reflect the diversity of Nepal.

(5) If the name, objectives, symbol or flag of any political party is of a nature that disturbs the religious or communal unity of the country or disintegrates the country, such political party shall not be registered. 270.

Prohibition on banning political parties: (1) Any law made or any provision or decision made to impose a ban on the formation and operation of political parties pursuant to Article 269 and the propagation and publicity thereof to gain the support and cooperation of the general public for the ideology, philosophy and program of the party shall be deemed contrary to this Constitution and shall be void ab initio. (2) Any law made or any provision or decision made to allow only a single political party or persons having the same kind of political ideology, philosophy or program to participate or be involved in elections, the political system of the country or the operation of the state system shall be deemed contrary to this Constitution and shall be void ab initio.

271. Registration required to obtain recognition for election as a political party: (1) Every political party registered pursuant to Article 269 that wishes to obtain recognition from the Election Commission for the

purpose of elections shall, after fulfilling the procedures as per federal law, register with the Election Commission. (2) When applying for the purpose of sub-section (1), the political party shall, in addition to the details mentioned in sub-section (3) of Article 269, submit an annual audit report and must also fulfill the conditions mentioned in sub-section (4) of that Article. 272. Other provisions relating to political parties: The formation, registration, operation and facilities of political parties and other related matters shall be as determined by federal law. Part-30 Emergency Powers 273.

Emergency provisions: (1) If a serious crisis arises due to war, external aggression, armed rebellion, extreme economic breakdown, natural disaster or epidemic concerning the sovereignty, territorial integrity or security of any part of Nepal, the President may declare or issue an order for a state of emergency to be effective throughout Nepal or in any specific part of Nepal. (2) Notwithstanding anything contained in sub-section (1), if a serious crisis arises in a Province due to natural disaster or epidemic, the concerned Provincial Government may request the Government of Nepal to declare or issue an order for a state of emergency in the Province or any part thereof pursuant to this Article. (3) A declaration or order made pursuant to sub-section (1) shall be presented to both Houses of the Federal Parliament for approval within one month from the date of such declaration or order. (4) If a declaration or order presented for approval pursuant to sub-section (3) is approved by at least a two-thirds majority of the total number of members then existing of both Houses of the Federal Parliament, such declaration or order shall remain in force for a period of three months from the date of such declaration or order. (5) If a declaration or order presented for approval pursuant to sub-section (3) is not approved in accordance with sub-section (4), it shall automatically become ineffective. (6) Notwithstanding anything contained elsewhere in this Article, if the situation under sub-section (1) still exists, a proposal to extend the period of the emergency declaration or order for another period not exceeding three months may be presented to the Federal Parliament before the expiry of the period under sub-section (4) for one more time. (7) If the proposal under sub-section (6) is passed by at least a two-thirds majority of the total number of members then existing of both Houses of the Federal Parliament, the declaration or order of the state of emergency shall remain in force for the period specified in such proposal. (8) In the event of dissolution of the House of Representatives, the powers exercisable by the Federal Parliament pursuant to sub-sections (3), (4), (6) and (7) shall be exercised by the National Assembly. (9) After a declaration or order of a state of emergency under sub-section (1), the President may issue necessary orders to remedy such situation.

An order so issued shall have the force of law as long as the state of emergency continues.

(10) While issuing a declaration or order of a state of emergency under sub-section (1), fundamental rights provided in Part-3 may be suspended for the period such declaration or order remains in force. Provided that the right to constitutional remedy and the right to obtain habeas corpus under Articles 16, clauses (g) and (gh) of sub-section (2) of Article 17, Article 18, sub-section (2) of Article 19, Articles 20, 21, 22, 24, sub-section (1) of Article 26, 29, 30, 31, 32, 35, sub-sections (1) and (2) of Article 36, 38, 39, sub-sections (2) and (3) of Article 40, 41, 42, 43, 45 and Article 46 shall not be suspended.

(11) If any Article of this Constitution is suspended pursuant to sub-section (10), no petition may be filed in any court or question raised therein for the enforcement of the fundamental right conferred by that Article.

(12) If during the period a declaration or order under this Article is in force, any person suffers any type of loss due to a mala fide act of any official, the aggrieved person may claim compensation for the loss suffered by him/her within three months from the date of termination of such declaration or order. Upon such claim, the court may, in accordance with federal law, award compensation and punish the perpetrator.

(13) The President may withdraw a declaration or order under this Article at any time. Part-31

Amendment of the Constitution

274. Amendment of the Constitution: (1) This Constitution shall not be amended in a manner contrary to the sovereignty, territorial integrity, autonomy and sovereignty vested in the people of Nepal.

(2) Subject to sub-section (1) and other Articles of this Constitution, a bill to amend or repeal any Article of this Constitution may be introduced in either House of the Federal Parliament. Provided that sub-section (1) shall not be amended.

(3) A bill introduced pursuant to sub-section (2) shall be publicly published for the information of the general public within thirty days of its presentation in the concerned House.

(4) If a bill introduced pursuant to sub-section (2) relates to the alteration of the boundary of any Province or a matter mentioned in Schedule-6, the Speaker or Chairperson of the concerned House shall send such bill to the Provincial Assembly for consent within thirty days of its presentation in the Federal Parliament.

(5) A bill sent pursuant to sub-section (4) shall be approved or rejected by a majority of the total number of members then existing of the concerned Provincial Assembly within three months, and information thereof shall be sent to the Federal Parliament.

Provided that if any Provincial Assembly is not in existence at that time, it shall be approved or rejected and sent within three months from the date of the first meeting of such Provincial Assembly after its formation.

(6) If information of approval or rejection is not given within the period under sub-section (5), it shall not bar the House of the Federal Parliament where the bill originated from proceeding with the bill.

(7) If a majority of Provincial Assemblies give notice of rejection of such bill to the concerned House of the Federal Parliament within the period under sub-section (5), the bill shall become ineffective.

(8) A bill that does not require the consent of Provincial Assemblies, or that has been approved by a majority of Provincial Assemblies pursuant to sub-section (5), shall be passed by at least a two-thirds majority of the total number of members then existing of both Houses of the Federal Parliament.

(9) A bill passed pursuant to sub-section (8) shall be presented to the President for certification.

(10) The President shall certify the bill presented pursuant to sub-section (9) within fifteen days of its receipt, and the Constitution shall be amended from the date of certification. Part-32

Miscellaneous

275. Provisions relating to referendum: (1) If the Federal Parliament decides by a majority of two-thirds of the total number of members then existing that it is necessary to decide any matter of national importance by referendum, a decision may be taken on such matter by referendum.

(2) The referendum and other related provisions shall be as determined by federal law. 276. Pardon: The President may, in accordance with law, grant pardon, stay, commutation or remission of any sentence imposed by any court, judicial or quasi-judicial body or administrative authority or body. 277. Titles, honours and decorations: (1) The President shall confer titles, honours and decorations to be awarded on behalf of the state.

(2) No citizen of Nepal shall accept any title, honour or decoration conferred by any foreign government

without the approval of the Government of Nepal. 278. Power to conclude treaties: (1) The power to conclude treaties or agreements shall vest in the Federation.

(2) When concluding a treaty or agreement on a matter falling within the list of powers of the Province, the Government of Nepal shall consult the concerned Province.

(3) The Provincial Council of Ministers may, with the consent of the Government of Nepal, enter into contractual agreements on economic and industrial matters. 279.

Ratification, accession, acceptance or approval of treaties or agreements: (1) The ratification, accession, acceptance or approval of treaties or agreements to which the State of Nepal or the Government of Nepal is a party shall be in accordance with federal law. (2) When making a law pursuant to sub-section (1), it shall include a condition that the ratification, accession, acceptance or approval of treaties or agreements on the following matters must be by a two-thirds majority of the total number of members then existing of both Houses of the Federal Parliament: (a) Peace and friendship, (b) Security and strategic alliance, (c) The boundary of the State of Nepal, and (d) Natural resources and the sharing of their utilization. Provided that the ratification, accession, acceptance or approval of treaties or agreements of a general nature among those mentioned in clauses (a) and (d) that do not have a wide, serious or long-term impact on the nation may be by a simple majority of the members present in a meeting of the House of Representatives. (3) No treaty or agreement concluded after the commencement of this Constitution shall be applicable to the Government of Nepal or Nepal unless it is ratified, acceded to, accepted or approved in accordance with this Article. (4) Notwithstanding anything contained in sub-sections (1) and (2), no treaty or agreement shall be concluded that adversely affects the territorial integrity of Nepal. 280. Special provision relating to the performance of the President's functions: If both the offices of the President and the Vice-President fall vacant under this Constitution, the Speaker of the House of Representatives shall perform the functions to be performed by the President under this Constitution until the election of the President or Vice-President is held and they assume office. 281. Review and revision of special rights: The Government of Nepal shall, on the basis of the human development index, review and revise the implementation and impact of the provision of special rights for women and the Dalit community in conjunction with the national census held every ten years. 282. Ambassadors and special representatives: (1) The President may appoint Nepalese Ambassadors and special representatives for specific purposes on the basis of the principle of inclusion. (2) The President shall receive Letters of Credence from foreign Ambassadors and diplomatic representatives. 283. Appointments to be made on inclusive principle: Appointments to the offices of constitutional organs and bodies shall be made on the inclusive principle. 284.

Provisions relating to Constitutional Council: (1) There shall be a Constitutional Council consisting of the following Chairperson and members to recommend the appointment of the Chief Justice and the heads and office bearers of constitutional bodies under this Constitution: (a) Prime Minister ? Chairperson (b) Chief Justice ? Member (c) Speaker of the House of Representatives ? Member (d) Chairperson of the National Assembly ? Member (e) Leader of the Opposition Party in the House of Representatives ? Member (f) Deputy Speaker of the House of Representatives ? Member (2) When recommending the appointment of the Chief Justice in the event of a vacancy in the office of the Chief Justice, the Minister of Law and Justice of the Government of Nepal shall be a member of the Constitutional Council. (3) The Constitutional Council shall recommend for appointment under this Constitution at least one month before the office of the Chief Justice or any head or office bearer of a constitutional body falls vacant. Provided that in the event of such office falling vacant due to death or resignation, it may recommend for appointment so as to fill the vacancy within one month from the date of vacancy. (4) Other functions, duties and powers of the Constitutional Council and

the procedure relating to the appointment of the Chief Justice or heads or office bearers of constitutional bodies shall be as determined by federal law. (5) The Chief Secretary of the Government of Nepal shall act as the Secretary of the Constitutional Council. 285. Formation of government services: (1) The Government of Nepal may, to carry out the administration of the country, form the Federal Civil Service and other federal government services as required. The formation, operation and terms of service of such services shall be as determined by federal law. (2) Filling of vacancies by competitive examination in all federal government services including the Federal Civil Service shall be on the basis of open and proportional inclusive principle in accordance with federal law. (3) The Provincial Council of Ministers, Village Executive and Municipal Executive may, as required to carry out their administration, form and operate various government services in accordance with law. 286.

Election Constituency Delimitation Commission: (1) For the purpose of delimiting election constituencies for elections to the members of the Federal Parliament and members of the Provincial Assembly under this Constitution, the Government of Nepal may form an Election Constituency Delimitation Commission consisting of the following Chairperson and members: (a) A retired judge of the Supreme Court ? Chairperson (b) One geographer ? Member (c) One sociologist or anthropologist ? Member (d) One public administration expert or legal expert ? Member (e) An officer of the Special Class of the Government of Nepal ? Member Secretary (2) The procedure of the Election Constituency Delimitation Commission shall be as specified at the time of formation of such Commission. (3) A person having the following qualifications shall be qualified for appointment to the office of Chairperson or member of the Election Constituency Delimitation Commission: (a) Having obtained at least a bachelor's degree in the relevant subject from a recognized university, (b) Having completed the age of forty-five years, and (c) Having high moral character. (4) The office of Chairperson or member of the Election Constituency Delimitation Commission shall fall vacant in any of the following circumstances: (a) If he/she submits a written resignation, (b) If he/she is removed by the Government of Nepal, Council of Ministers, (c) If he/she dies.

Amended by the First Amendment.(5) The Election Constituency Delimitation Commission shall delimit election constituencies under this Article based on population and geography as a basis of representation, as follows:

(a) Primarily based on population, ensuring that the ratio of population to the number of members is as equal as possible,

(b) While delimiting election constituencies pursuant to clause (a), ensuring that there is at least one election constituency in each district existing at the time of commencement of this Constitution.

(6) While delimiting election constituencies pursuant to sub-section (5), Added by the First Amendment.due consideration shall be given to population and geographical suitability, density of population of that region, geographical specificity, administrative and transport convenience, and community and cultural aspects.

(7) No question shall be raised in any court regarding the delimitation of election constituencies or the revision thereof by the Election Constituency Delimitation Commission.

(8) The Election Constituency Delimitation Commission shall submit a report of its work to the Government of Nepal.

(9) The Government of Nepal, Council of Ministers shall submit the report under sub-section (8) to the Federal Parliament and also send it to the Election Commission for implementation.

(10) The Election Constituency Delimitation Commission shall determine its own procedure.

- (11) The remuneration and facilities of the Chairperson and members of the Election Constituency Delimitation Commission shall be equivalent to that of the Chief Election Commissioner and Election Commissioners, respectively.
- (12) The election constituencies delimited pursuant to sub-section (5) shall be reviewed every twenty years.
- (13) The Government of Nepal shall provide the necessary staff to the Election Constituency Delimitation Commission.
287. Language Commission: (1) Within one year from the date of commencement of this Constitution, the Government of Nepal shall form a Language Commission with representation from the provinces.
- (2) The Language Commission shall consist of a Chairperson and such number of members as may be necessary.
- (3) The term of office of the Chairperson and members of the Language Commission shall be six years from the date of appointment.
- They shall not be eligible for reappointment.
- (4) A person having the following qualifications shall be qualified for appointment to the office of Chairperson or member of the Language Commission:
- (a) Having obtained a master's degree in the relevant subject from a recognized university,
 - (b) Having at least twenty years of work experience in the field of study, teaching, research and exploration of various languages of Nepal,
 - (c) Having completed the age of forty-five years, and
 - (d) Having high moral character.
- (5) The office of Chairperson or member of the Language Commission shall fall vacant in any of the following circumstances:
- (a) If he/she submits a written resignation,
 - (b) If he/she is removed by the Government of Nepal, Council of Ministers,
 - (c) If he/she attains the age of sixty-five years,
 - (d) If he/she dies.
- (6) The functions, duties and powers of the Language Commission shall be as follows:
- (a) To determine the criteria to be fulfilled for recognition as an official language and recommend languages to the Government of Nepal,
 - (b) To recommend measures to be adopted for the protection, promotion and development of languages to the Government of Nepal,
 - (c) To measure the level of development of mother tongues and submit suggestions to the Government of Nepal regarding the feasibility of their use in education,
 - (d) To study, research and monitor languages.
- (7) The Language Commission shall complete the work under clause (a) of sub-section (6) within five years from the date of formation of the Commission.
- (8) The Government of Nepal may, in coordination with the Provincial Government, establish branches of the Language Commission in the provinces.

(9) Other functions, duties and powers and procedures of the Language Commission shall be as determined by federal law. 288. Capital: (1) The capital of Nepal shall be in Kathmandu.

(2) The capital of a Province under this Constitution shall be as decided by a two-thirds majority of the total number of members then existing of the concerned Provincial Assembly.

(3) Until a decision is made under sub-section (2), the work of the Province shall be conducted from such place as specified by the Government of Nepal. 289.

Special provision relating to citizenship of office bearers: (1) To be elected, nominated or appointed to the office of President, Vice-President, Prime Minister, Chief Justice, Speaker of the House of Representatives, Chairperson of the National Assembly, Provincial Head, Chief Minister, Speaker of the Provincial Assembly and Head of Security Agencies, a person must have acquired citizenship of Nepal by descent. (2) For appointment under this Constitution to an office of a constitutional body other than those mentioned in sub-section (1), a person who has acquired citizenship of Nepal by descent, a person who has acquired naturalized citizenship of Nepal, or a person who has acquired citizenship of Nepal by birth shall also be qualified. Provided that in the case of a person who has acquired naturalized citizenship of Nepal, he/she must have resided in Nepal for at least ten years; in the case of a person who has acquired citizenship of Nepal by birth, and a person who has acquired naturalized citizenship of Nepal pursuant to sub-section (6) of Article 11, he/she must have resided in Nepal for at least five years. 290. Provisions relating to Guthi: (1) The Federal Parliament shall make necessary laws regarding the rights of farmers having occupancy rights over Guthi land and the rights of Guthi, without adversely affecting the fundamental concepts of Guthi. (2) Other provisions relating to Guthi shall be as determined by federal law. 291. Not qualified for appointment: (1) Notwithstanding anything contained elsewhere in this Constitution, a citizen of Nepal who has obtained a permanent residence permit of a foreign country shall not be qualified to be elected, nominated or appointed to an office that is filled by election, nomination or appointment under this Constitution. Provided that there shall be no bar to electing, nominating or appointing a person who has renounced such permanent residence permit of a foreign country to such office after the expiry of at least three months. (2) Other provisions relating to a citizen of Nepal who has obtained a permanent residence permit of a foreign country under sub-section (1) shall be as determined by federal law. 292.

Provisions relating to parliamentary hearing: (1) Before appointment to the office of Chief Justice, judges of the Supreme Court, members of the Judicial Council, heads or office bearers of constitutional bodies and ambassadors to be appointed on the recommendation of the Constitutional Council under this Constitution, there shall be a parliamentary hearing in accordance with federal law. (2) For the purpose of sub-section (1), a joint committee consisting of fifteen members, comprising members of both Houses of the Federal Parliament, shall be formed in accordance with federal law. (3) A member of the joint committee under sub-section (2) shall not be allowed to appear and plead in the Supreme Court during the term of that Federal Parliament. 293. Monitoring of work of constitutional bodies: The heads and office bearers of constitutional bodies shall remain accountable and answerable to the Federal Parliament. Committees of the House of Representatives may monitor and evaluate the reports and work of constitutional bodies other than the National Human Rights Commission and give necessary directions or advice. 294. Annual report of constitutional bodies: (1) Constitutional bodies under this Constitution shall submit an annual report of their work to the President, and the President shall cause such report to be submitted to the Federal Parliament through the Prime Minister. (2) Matters to be included in the annual report under sub-section (1) shall be as determined by federal law. (3) Notwithstanding anything contained in sub-section (1), a constitutional body may prepare separate reports regarding its work in each Province and submit them to the Provincial Head.

Part-33 Transitional Provisions 295. Formation of Federal Commission: (1) The Government of Nepal may form a Federal Commission to advise on matters relating to the delimitation of provinces. (2) The naming of provinces under sub-section (3) of Article 56 shall be done by a two-thirds majority of the total number of members of the concerned Provincial Assembly. (3) For the purpose of determining the number and boundaries of Village Municipalities, Municipalities and Special, Protected or Autonomous Areas to be formed under sub-sections (4) and (5) of Article 56, the Government of Nepal shall form a commission. Such commission shall determine the number and boundaries of Village Municipalities, Municipalities and Special, Protected or Autonomous Areas in accordance with the criteria set by the Government of Nepal. (4) The commission under sub-section (3) shall be formed within six months from the date of commencement of this Constitution. The term of such commission shall be one year. 296.

Constituent Assembly to be converted into Legislature-Parliament: (1) The Constituent Assembly existing at the commencement of this Constitution shall, after the commencement of this Constitution, be automatically converted into a Legislature-Parliament, and the term of such Legislature-Parliament shall remain until the 7th of Magh 2074 (approximately January 21, 2018). Provided that if elections to the House of Representatives under this Constitution are held before the expiry of such term, the Legislature-Parliament shall remain until the day preceding the day of filing of nomination papers for candidates for such election. (2) Bills pending in the Legislature-Parliament at the time of promulgation of this Constitution shall automatically stand transferred to the Legislature-Parliament under sub-section (1). (3) The work to be performed by the Federal Parliament under this Constitution shall be performed by the Legislature-Parliament under sub-section (1) until the election of the House of (8) Other procedures relating to the election of the Speaker and Deputy Speaker and the procedure for presenting and passing a motion that the Speaker or Deputy Speaker has not conducted himself/herself in accordance with the office shall be as per the prevailing Rules of Procedure of the Legislature-Parliament. 300. Provision relating to Judiciary: (1) The Supreme Court, the Constitutional Assembly Court, the Courts of Appeal and the District Courts existing at the time of commencement of this Constitution shall continue to exist until the structure of the judiciary under this Constitution is prepared. This Constitution shall not be deemed to have prevented the adjudication of cases filed in such courts prior to the commencement of this Constitution and cases filed after the commencement of this Constitution by those respective courts. (2) The Chief Justice or Judges of the Supreme Court, Chief Judges, Judges of the Courts of Appeal and Judges of the District Courts holding office at the time of commencement of this Constitution shall be deemed to have been appointed under this Constitution. (3) High Courts pursuant to Article 131 shall be established in accordance with federal law within one year from the date of commencement of this Constitution.

Upon the establishment of such courts, the Courts of Appeal existing at the time of commencement of this Constitution shall be dissolved.

(4) After the establishment of High Courts pursuant to subsection (3), cases pending in the Courts of Appeal shall stand transferred to the High Court designated by the Government of Nepal, in consultation with the Judicial Council, by publishing a notice in the Nepal Gazette.

(5) After the establishment of High Courts pursuant to subsection (3), the Chief Justice, upon the recommendation of the Judicial Council, shall post the Chief Judges and Judges of the Courts of Appeal holding office at the time of commencement of this Constitution as Chief Judges and Judges of the High Courts.

(6) Additional Judges of the Courts of Appeal holding office at the time of commencement of this Constitution

may continue in office for the term specified at the time of their appointment.

(7) Cases relating to criminal offenses punishable by imprisonment for more than one year which were pending in bodies other than courts at the time of commencement of this Constitution shall, after the commencement of this Constitution, stand transferred to the concerned District Court. 301. Provision relating to Constitutional Bodies and Office-bearers: (1) The constitutional bodies existing at the time of commencement of this Constitution and provided for in this Constitution shall be deemed to have been constituted under this Constitution, and this Constitution shall not be deemed to have prevented the settlement of matters pending in such bodies, subject to this Constitution.

(2) The heads or office-bearers of constitutional bodies holding office at the time of commencement of this Constitution shall be deemed to have been appointed under this Constitution, and they shall continue to hold office subject to the terms of service in force at the time of their appointment.

(3) Office-bearers working in the Commission for the Investigation of Abuse of Authority and the Public Service Commission at the time of commencement of this Constitution in excess of the number mentioned in this Constitution shall continue to hold office subject to the terms of service in force at the time of their appointment. 302. Formation and Operation of Government Services in Provinces and Local Levels: (1) The Government of Nepal shall make necessary arrangements to provide necessary services in Provinces and Local Levels.

(2) While making arrangements pursuant to subsection (1), the Government of Nepal may, in accordance with law, adjust civil servants serving in government service at the time of commencement of this Constitution to the Federation, Province and Local Levels and make arrangements for service delivery. 303.

Provision relating to Local Bodies: (1) The local bodies existing at the time of commencement of this Constitution shall continue to exist until the number and area of Local Levels under this Constitution are determined. (2) Elections of office-bearers of local bodies existing pursuant to subsection (1) shall be held in accordance with law. (3) Office-bearers of local bodies elected pursuant to subsection (2) shall continue to hold office until elections for Local Levels under this Constitution are held. 304. Existing Laws to Remain in Force: (1) The laws of Nepal in force at the time of commencement of this Constitution shall remain in force until repealed or amended. Provided that any law inconsistent with this Constitution shall, to the extent of such inconsistency, become automatically invalid after one year from the date of the first meeting of the Federal Parliament constituted under this Constitution. (2) Acts relating to the peace process under the Interim Constitution of Nepal, 2063 (2007) shall be deemed to have been done under this Constitution. 305. Power to Remove Difficulties: Until the election of the Federal Parliament under this Constitution and the commencement of its first session, if any difficulty arises in implementing this Constitution, the President may, on the recommendation of the Government of Nepal, the Council of Ministers, issue necessary orders to remove such difficulty. Every such order shall be presented for ratification before the Legislature-Parliament or the Federal Parliament at its next immediate sitting. Part-34 Interpretation 306.

Definitions and Interpretation: (1) Unless the subject or context otherwise requires, in this Constitution,- (a) "Minority" means ethnic, linguistic and religious groups whose population is less than the percentage determined by federal law, and also includes groups having their own ethnic, religious and linguistic distinctiveness, having the aspiration to preserve it, and having suffered discrimination and oppression. (b) "Law" means federal law, provincial law and local law. (c) "Article" means an article of this Constitution. (d) "Municipality" includes a Metropolis and a Sub-metropolis. (e) "Citizen" means a citizen of Nepal. (f) "Province" means the area and form of a federal unit of Nepal divided into federal units under this

Constitution. (g) "Remuneration" includes salary, allowance and any other kind of remuneration and facilities. (h) "State power" means the powers relating to the executive, legislative and judiciary of the State, and also includes residual powers. (i) "Bill" means a draft of a Constitution amendment or Act presented in the Federal Parliament or Provincial Assembly. (j) "Federation" means the federal level as the highest unit of the federal structure. (k) "Federal unit" means the Federation, a Province and a Local Level. (l) "Constitutional body" means the Commission for the Investigation of Abuse of Authority, the Auditor General, the Public Service Commission, the Election Commission, the National Human Rights Commission, the National Natural Resources and Finance Commission, the National Women Commission, the National Dalit Commission, the National Inclusion Commission, the Indigenous Nationalities Commission, the Madhesi Commission, the Tharu Commission and the Muslim Commission established under this Constitution. (m) "Marginalized" means communities that are politically, economically and socially backward, unable to enjoy or deprived of services and facilities due to discrimination, oppression and geographical remoteness, and having a status lower than the human development level as per federal law, and also includes extremely marginalized and endangered communities. (n) "Local Level" means the Village Council, Municipality and District Assembly to be established under this Constitution. (2) Unless the subject or context otherwise requires, subject to the provisions expressed in this Constitution, the legal provisions relating to the interpretation of laws applicable to the interpretation of the laws of Nepal shall also apply to the interpretation of this Constitution. Part-35 Short Title, Commencement and Repeal 307. Short Title and Commencement: (1) This Constitution shall be called "The Constitution of Nepal". (2) This Constitution shall commence on the third day of the month of Ashwin of the year Two Thousand and Seventy Two (September 20, 2015). 308. Repeal: The Interim Constitution of Nepal, 2063 (2007) is hereby repealed.

Schedule-1 (Relating to Article 8, Sub-article (2)) National Flag of Nepal Method of Making the National Flag of Nepal (a) Method of making the shape inside the border (1) Draw a line of the required length from left to right on a crimson red cloth in the lower part, and name it AB. (2) From A, draw a straight line upward to C such that the length of AC equals the length of AB plus one-third of AB. Mark point D on AC at a distance from A equal to the length of AB. Join B and D. (3) On line BD, mark point E at a distance from B equal to the length of AB. (4) Draw a line from E parallel to AB, starting from point C on AC, extending to the right to a point F such that the length of EF equals the length of AB. (5) Join G and F. (b) Method of making the moon (6) Mark point J on AB at a distance from A equal to one-fourth of AB. From there, draw a line upward parallel to AC, touching line GF at point H. (7) From J, draw a line parallel to AB to the right, touching line GF at point T, such that half of GC is taken from J. (8) Mark the point where lines JT and JH intersect as I. (9) Join J and F. (10) Mark the point where lines JF and JH intersect as D. (11) Taking D as the center, mark point E on the lower part of line JH such that the distance from D to line BE is the minimum possible, creating a tangent to line BE. (12) Draw a line from D parallel to AB from left to right, touching line AC at a point named N. (13) Taking I as the center and radius IE, draw an arc on the lower part, and mark the two points where it touches the line passing through N and D as R and S respectively. (14) Taking D as the center and radius DS, draw a semicircular arc on the lower part touching the arc R-S. (15) Taking E as the center and radius ED, draw an arc touching the arc R-D-S on both sides, and mark the points where it touches the arc R-D-S as D and H respectively. Join D and H.

Mark the point where line D-H and line J-H intersect as N. (16) Taking N as the center and radius N-H, draw a semicircular arc touching the upper part of the arc R-D-S on both sides. (17) Taking N as the center and radius N-D, draw an arc touching the upper part of the arc R-D-S on both sides. (18) Within the semicircle of Clause (16) and outside the arc of Clause (17), make eight equal angles of the moon. (c) Method of making the sun (19) From P, the midpoint of AC, draw a line P-F parallel to AB, touching line B-E. (20) Taking the

point where lines J-H and P-F intersect, B, as the center, and radius D-E, draw a complete circle. (21) Taking B as the center, and radius I-E, draw a complete circle. (22) Outside the circle of Clause (20) and inside the circle of Clause (21), make twelve angles of the sun in the circular space such that two points touch line J-H. (d) Method of making the border (23) Add a border of dark blue color, with a width equal to the width of N-D, to the outer boundary of the flag's shape on all sides, but at the five corners of the flag, the outer corners shall also be made equal to the inner ones. (24) If the flag is used with a cord, keep it as per the above orientation. If the flag is to be inserted on a pole, widen the border on side AC as necessary. If using a cord or pole, make a hole on side AC. Explanation: The lines J-H, D-H, C-D, B-E, N-S, J-T, and P-F drawn while making the flag are imaginary. Similarly, the outer and inner circles of the sun and the arcs other than the crescent moon are also imaginary. They are not shown on the flag. Note: The size of the National Flag shall be as determined by the Government of Nepal. Schedule-2 (Relating to Article 9, Sub-article (1)) National Anthem of Nepal Sayaan Thunga Phulka Hami, Eutai Mala Nepali Sarvabhaum Bhai Phailieka, Mechi-Mahakali Prakritika Koti-Koti Sampadako Aachhal Birharuko Ragatle, Swatantra Ra Atal Gyanbhumi Shantibhumi, Tarai Pahad Himal Akhanda Yo Pyaro Hamro, Matribhumi Nepal Bahul Jati, Bhasa, Dharma, Sanskriti Chan Vishal Agragami Rashtra Hamro, Jaya Jaya Nepal. Schedule-3 (Relating to Article 9, Sub-article (2)) Coat of Arms of Nepal Note: This coat of arms may be made in a larger or smaller size as required. The colors determined by the Government of Nepal shall be used therein.

Amended by the Second Amendment. Schedule-4 (Relating to Article 56, Sub-article (3)) Provinces and Districts to be included in the respective Provinces Province No. 1 Province No. 2 1. Taplejung 1. Saptari 2. Panchthar 2. Siraha 3. Ilam 3. Dhanusha 4. Sankhuwasabha 4. Mahottari 5. Tehrathum 5. Sarlahi 6. Dhankuta 6. Rautahat 7. Bhojpur 7. Bara 8. Khotang 8. Parsa 9. Solukhumbu 10. Okhaldhunga 11. Udayapur 12. Jhapa 13. Morang 14. Sunsari Province No. 3 Province No. 4 1. Dolakha 1. Gorkha 2. Ramechhap 2. Lamjung 3. Sindhuli 3. Tanahun 4. Kavrepalanchok 4. Kaski 5. Sindhupalchok 5. Manang 6. Rasuwa 6. Mustang 7. Nuwakot 7. Parbat 8. Dhading 8. Syangja 9. Chitawan 9. Myagdi 10. Makwanpur 10. Baglung 11. Bhaktapur 11. Nawalparasi (Bardaghat Susta East) 12. Lalitpur 13. Kathmandu Province No. 5 Province No. 6 Province No. 7 1. Nawalparasi (Bardaghat Susta West) 1. Rukum (Western Part) 1. Bajura 2. Rupandehi 2. Salyan 2. Bajhang 3. Kapilvastu 3. Dolpa 3. Doti 4. Palpa 4. Jumla 4. Achham 5. Arghakhanchi 5. Mugu 5. Darchula 6. Gulmi 6. Humla 6. Baitadi 7. Rukum (Eastern Part) 7. Kalikot 7. Dadeldhura 8. Rolpa 8. Jajarkot 8. Kanchanpur 9. Pyuthan 9. Dailekh 9. Kailali 10. Dang 10. Surkhet 11. Banke 12. Bardiya Schedule-5 (Relating to Article 57, Sub-article (1) and Article 109) List of Federal Power S.N. Subjects 1. Relating to defence and military (a) Protection of national unity and territorial integrity (b) Relating to national security 2. War and defence 3. Arms, ammunition, factories and production relating 4. Central police, armed police force, national intelligence and investigation, peace and security 5. Central planning, central bank, financial policy, currency and banking, monetary policy, foreign grants, assistance and loans 6. Foreign and diplomatic affairs, international relations and relating to the United Nations 7. International treaties or agreements, extradition, mutual legal assistance and international boundaries, international boundary rivers, 8. Telecommunications, allocation of radio frequency, radio, television and postal services 9. Customs, excise duty, value added tax, corporate income tax, personal income tax, remuneration tax, passport fee, visa fee, tourism fee, service charge and fee, fines and penalties 10. Federal civil service, judicial service and other government services 11. Policy and standards relating to conservation and multipurpose use of water resources 12. Inter-country and inter-provincial electricity transmission lines 13. Central statistics (national and international standards and quality) 14. Large electricity, irrigation and other projects and schemes at central level 15.

Central universities, academies at central level, university standards and regulation, central library 16. Health

policy, health services, health standards, quality and monitoring, national or specialized service provider hospitals, traditional treatment services, communicable disease control 17. Federal Parliament, Federal Executive, matters relating to Local Level, special structure 18. International trade, exchange, ports, quarantine 19. Aviation, international airports 20. National transportation policy, management of railways and national highways 21. Supreme Court, High Court, District Court and laws relating to administration of justice 22. Citizenship, passport, visa, immigration 23. Relating to nuclear energy, atmosphere and space 24. Intellectual property (including patent, design, trademark and copyright) 25. Weights and measures 26. Mining excavation 27. National and international environmental management, national parks, wildlife reserves and wetlands, national forest policy, carbon services 28. Insurance policy, securities, cooperative regulation 29. Land use policy, settlement development policy, tourism policy, environmental adaptation 30. Creation of criminal and civil laws 31. Security printing press 32. Social security and poverty alleviation 33. Constitutional bodies, commissions of national importance 34. Places of archaeological importance and ancient monuments 35. Any subject not mentioned in the lists of power of the Federation, Province and Local Level or in the concurrent list, and matters not specified in this Constitution and federal law Schedule-6 (Relating to Article 57, Sub-article (2), Article 162, Sub-article (4), Article 197, Article 231, Sub-article (3), Article 232, Sub-article (7), Article 274, Sub-article (4) and Article 296, Sub-article (4))

List of Provincial Power S.N. Subjects

1. Provincial police administration and peace and security
2. Operation of financial institutions in accordance with the policy of Nepal Rastra Bank, cooperative institutions, foreign grants and assistance with the consent of the centre
3. Operation of radio, FM, television
4. Land registration fee, vehicle tax, entertainment tax, advertisement tax, tourism, tax on agricultural income, service charge and fee, fines and penalties
5. Provincial civil service and other government services
6. Provincial statistics
7. Provincial level electricity, irrigation and drinking water services, transport
8. Provincial universities, higher education, library, museum
9. Health services
10. Relating to Provincial Assembly, Provincial Council of Ministers
11. Trade within the Province
12. Provincial highways
13. Provincial investigation bureau
14. Physical management of provincial government offices and other necessary subjects
15. Provincial Public Service Commission
16. Land management, land records
17. Mining exploration and management
18. Protection and use of language, script, culture, fine arts and religion
19. National forest, water use and environmental management within the Province
- 20.

Agriculture and livestock development, factories, industrialization, trade business, transportation 21. Guthi management

Schedule-7 (Relating to Article 57, Sub-article (3), Article 109, Article 162, Sub-article (4), Article 197)

List of Concurrent Power of Federation and Province S.N. Subjects

1. Criminal and civil procedure and evidence and oath (legal recognition, public acts and records and judicial proceedings)
2. Supply, distribution, price control, quality and monitoring of essential goods and services
3. Preventive detention, prison and custody management and arrangement of peace and security on matters relating to the security of the country
4. Transfer of accused, detainees and prisoners from one Province to another
5. Laws relating to family matters (marriage, transfer of property, divorce, endangered, orphans, adoption, inheritance and joint family)
6. Acquisition, acquisition and creation of rights of property
7. Relating to contract, cooperative, partnership and agency
8. Relating to bankruptcy and insolvency
9. Drugs and poisons
10. Planning, family planning and population management
11. Social security and employment, trade unions, settlement of industrial disputes, rights of workers and matters relating to disputes
12. Legal profession, auditing, engineering, medical, Ayurvedic medicine, veterinary medicine, Ami and other professions
13. Provincial boundary rivers, waterways, environmental protection, biodiversity
14. Relating to communication media
15. Industry and minerals and physical infrastructure
16. Casino, lottery
17. Natural and non-natural disaster preparedness, rescue, relief and rehabilitation
18. Tourism, drinking water and sanitation
19. Motion

pictures, cinema halls, sports 20. Operation and management of insurance business 21. Poverty alleviation and industrialization 22. Scientific research, science technology and human resource development 23. Forests, mountains, forest conservation areas, water use spread inter-provincially 24. Land policy and laws relating thereto 25. Employment and unemployment assistance Schedule-8 (Relating to Article 57, Sub-article (4), Article 214, Sub-article (2), Article 221, Sub-article (2) and Article 226, Sub-article (1)) List of Local Level Power S.N Subjects 1. Municipal police 2. Cooperative institutions 3. Operation of FM 4. Local taxes (property tax, house rent tax, land registration fee, vehicle tax), service charge and fee, tourism fee, advertisement tax, business tax, land tax (land revenue), fines and penalties, entertainment tax, collection of land revenue 5. Management of local services 6. Collection of local statistics and records 7. Development projects and schemes at local level 8. Basic and secondary education 9. Basic health and sanitation 10. Local market management, environmental protection and biodiversity 11. Local roads, rural roads, agricultural roads, irrigation 12.

Management of Village Assembly, Municipal Assembly, District Assembly, local courts, conciliation and mediation 13. Local records management 14. Distribution of land ownership certificates 15. Agriculture and animal husbandry, management of agricultural production, animal health, cooperatives 16. Management of senior citizens, persons with disabilities and incapacitated persons 17. Collection of statistics of unemployed persons 18. Management, operation and control of agricultural extension 19. Drinking water, small hydropower projects, alternative energy 20. Disaster management 21. Conservation of watersheds, wildlife, mines and minerals 22. Protection and development of language, culture and fine arts Schedule-9 (Relating to Article 57, Sub-article (5), Article 109, Article 162, Sub-article (4), Article 197, Article 214, Sub-article (2), Article 221, Sub-article (2) and Article 226, Sub-article (1)) Concurrent List of Power of Federation, Province and Local Level S.N Subjects 1. Cooperatives 2. Education, sports and periodicals 3. Health 4. Agriculture 5. Services such as electricity, drinking water, irrigation 6. Service charges, fees, fines and penalties, royalties from natural resources, tourism fees 7. Forest, jungle, wildlife, birds, water use, environment, ecology and biodiversity 8. Mines and minerals 9. Disaster management 10. Social security and poverty alleviation 11. Personal events, birth, death, marriage and statistics 12. Archaeology, ancient monuments and museums 13. Squatter management 14. Royalties from natural resources 15. Vehicle permits